

Terms and Conditions

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1. Object

1.1 Introduction

Welcome to QFREEMART

This Terms and Conditions and legal information (hereinafter, the “ Terms of use” ; “Terms “ ; “Agreement” ; “Services agreement” , “Contract”) is a legal agreement between Shree Samarth Innovative Technologies Private Limited, (“The Company,” “us”, or “we”) , by which expression includes QFREEMART’s relevant legal representatives, administrators, successors-in-interest, permitted assigns and affiliates (“Affiliates”), and the entity or person (“you”, “your”, or “user”) who registered on the ,or visits QFREEMART App (“The App “ “The Platform”) or websites worldwide (“The Website”) and which establishes the terms and conditions that govern the provision of services rendered to users upon accessing the Platform.

Welcome to QFREEMART (“Platform”), owned and operated by its lawful proprietor. By accessing or using our app, website, or services, you agree to these Terms & Conditions (“Terms”). These Terms form a legally binding agreement between you and QFREEMART and apply to Buyers, Vendors, and other users of the Platform. This Agreement applies to both goods and services and covers Buyers, Vendors, Executor Agents, and Delivery Agents. These Terms govern transactions in both retail (B2C) and non-retail (B2B) markets across hyper-local and extended service radii.

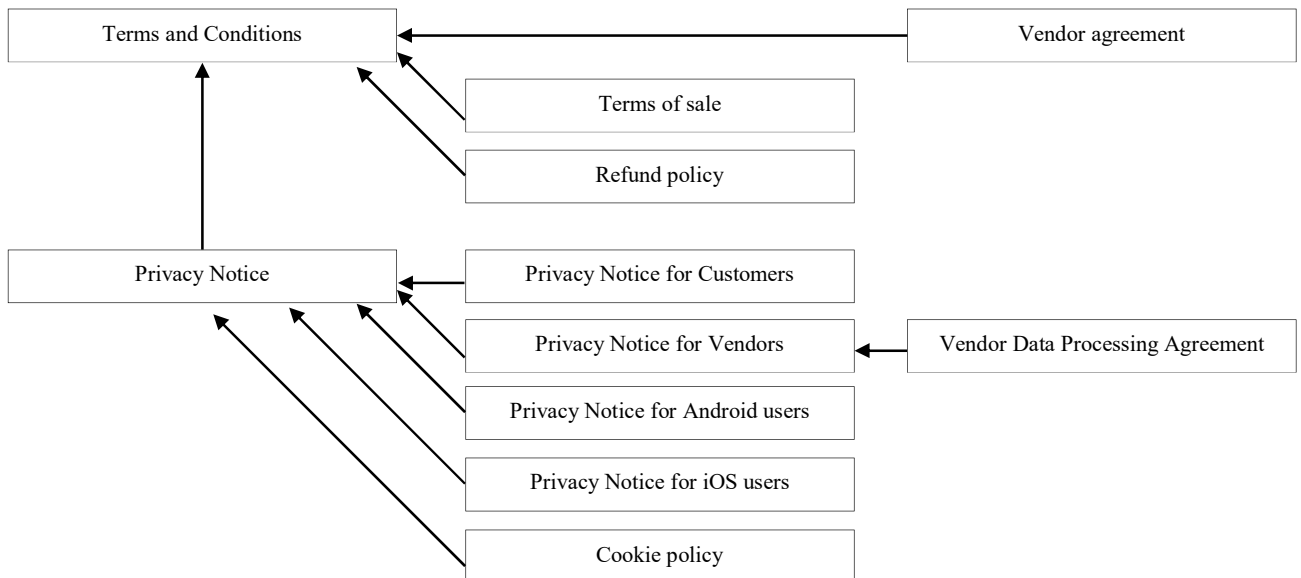
QFREEMART operates as a platform facilitating the display and acquisition of diverse goods & services from registered vendors. These vendors assume the responsibility of promoting, enabling availability, arranging delivery, and conducting financial transactions pertaining to customer orders. QFREEMART, in its role as the platform, assumes limited liability, as it solely serves as a host for users, providing the necessary means for viewing, promoting, and ordering items, thereby establishing connections between customers and vendors. It is the individual responsibility of each user to fulfill their obligations as outlined in these terms and conditions. QFREEMART shall not be held accountable for any user’s failure to fulfill their obligations as stipulated by this agreement..

The Company reserves the right to transfer, assign, sublicense or pledge this Agreement, in whole or in part, in the event of a reorganization of the corporate group in which the Company exists or in the event of a merger, sale of assets or other similar corporate transaction in which the Company may be involved in.

1.2 Definitions

Your utilization of our Services is contingent upon adhering to the provisions outlined in the following terms, conditions, and policies, which are incorporated by reference into this agreement.

The following documents shall be regarded as integral components of this agreement and should be consulted and observed in conjunction with it (The depiction herein below is solely for illustrative purposes. The correlation between the documents depicted shall not be construed as precluding the correlation between the documents themselves, nor shall it be interpreted as mutually exclusive.) :



When reading and interpreting these Terms and Conditions, it is important to consider that in addition to the definitions included in the aforementioned documents, the following provisions shall also apply:

"App" refers to the mobile application provided by Shree Samarth Innovative Technologies Private Limited, which facilitates the ordering, purchasing & selling of various items from registered vendors.

"User" refers to any individual or entity that accesses or uses the App, including registered customers and vendors.

"Company" refers to Shree Samarth Innovative Technologies Private Limited, the entity providing the App and services offered through it.

"Vendor" pertains to a legally recognized entity that is duly registered in the country of operation, holds a valid trade license, and has created a dedicated Vendor account on the App.

"Order" refers to a request placed by a registered customer for the purchase of items from a vendor through the App.

"Item" refers to any product or service offered for sale by a vendor through the App.

"Account" refers to the user account created by a customer or vendor to access and use the App.

"Services" refers to all features, functionalities, and services provided by the App, including order placement, payment processing, and communication between customers and vendors.

"Store" refers to the online store (whether hosted by QFREEMART or on a third-party website), or any storefront created utilizing the QFREEMART API, as well as any physical retail location(s) that are associated with the Account.

"Payment Gateway" refers to the third-party service provider used for secure payment processing.

"Content" refers to any text, images, videos, or other materials uploaded, transmitted, or displayed on the App.

"Intellectual Property Rights" refers to all copyrights, trademarks, patents, trade secrets, and other proprietary rights.

"Privacy Policy" refers to the Company's policy outlining the collection, use, and protection of user data.

"Force Majeure" refers to any event beyond the reasonable control of the Company, including natural disasters, acts of government, terrorism, or any other unforeseeable circumstances.

"Applicable Laws" refers to all relevant laws, regulations, and industry standards applicable to the use of the App and the provision of the services.

"Agreement" refers to this Terms and Conditions Agreement, including the policies incorporated by reference.

Executor Agent: An individual or entity that executes services or order-related tasks (e.g., packing, salon services, web design).

Delivery Agent: An individual or entity that delivers goods or services to the Buyer's location. When an Executor provides a home service (e.g., bridal makeup), they may act as both Executor and Delivery Agent; the Vendor remains responsible

Delivery Security Code: A one-time code exchanged at delivery/service completion to mark the order as complete.

Queue: The virtual ordering line for a Vendor's facility; Appointment: a time slot reserved with a Vendor

2. Consent to Provisions

2.1 Eligibility

These General Terms of Use ("General Terms", "Terms") are a legally binding agreement between you and us which govern the relationship and sets forth the terms and conditions by which you may access and use, including, without limitation, the Platform and our related Platforms, services, applications, products and any content, functionality services or any other interactive areas offered on or through the Platform (collectively, the "Services"). Access to certain Services or features of the Services (such as, by way of example and not limitation, the ability to upload Content) may be subject to various restrictions and not available to all the users of the Services at all times.

By using the Services, you consent that you are minimum 18 years old and of the age of majority in the jurisdiction you are accessing the Platform from and are fully eligible, able and competent to enter into this legally binding contract based on the terms, conditions, obligations, affirmations, representations, and warranties set forth in these Terms of Service. Additionally, you warrant and undertake that you have the full right, power and authority to enter into such agreement without limitations of any form such as but not restricted to language nuances in which this agreement is drafted which might impede your ability to fully understand its purpose and content. Furthermore, no any other prior or current agreement or obligation of any nature whatsoever interfere with your ability to abide by and comply with these Terms of Service. Finally you confirm that you enter into this legally binding contract under no duress or coercion but rather on your own free will. You must be legally capable of entering into contracts under applicable law to use the Platform

The User represents and warrants that all information pertaining to their identity and capacity, as provided to you in the registration forms for the Platform, is true, accurate, and complete. Furthermore, Users agree to maintain the accuracy and completeness of their details by promptly updating them as necessary

2.2 Acceptance of terms

This Agreement describes the terms and conditions that apply to your use of the Services.

If you do not understand any of the terms of this Agreement, please contact us before using the Services.

This Contract (including additional terms that may be provided by us when you engage with a feature of the Services) is the only agreement between us regarding the Services and supersedes all prior agreements for the Services.

By accessing and/or utilizing the Platform, you acknowledge, accept, and expressly agree to abide by the terms of use as set forth. You confirm that you enter into this legally binding Agreement under no duress or coercion but rather on your own free will.

By using the Services, you agree to utilize them solely for purposes that are in accordance with (a) the Terms and (b) any applicable laws, regulations, or generally accepted practices or guidelines in the relevant jurisdictions.

2.3 Severability

Should any portion, provision, representation, or warranty of this Agreement be prohibited or deemed void or unenforceable, it shall have no effect to the extent of such prohibition or unenforceability, without invalidating the remaining provisions contained herein.

In the event that any clause, whether in its entirety or in part, of these Terms becomes null and void, it is explicitly agreed that the remainder of the Agreement shall remain fully valid. The failure to enforce any breach of this Contract by Shree Samarth Innovative Technologies Private Limited does not signify a waiver of its right to enforce this Agreement.

2.4 Changes to terms

QFREEMART reserves the right to modify, alter, revise, or update these Terms at its sole discretion. It is your responsibility to regularly review these Terms and ensure ongoing adherence to them. By utilizing the QFREEMART Platform subsequent to any such amendment or alteration of the Terms, you expressly acknowledge and accept the revised or modified terms, and you also agree to be bound by them.

2.5 Start, Renewal, Cancellation

Unless otherwise specified, your agreement to these Terms and Conditions begins on the day you register for a user account (Account). Your access to your account will be automatically renewed for an identical duration as defined at the time of registration, unless otherwise specified. You may cancel your Account and terminate these Terms and Conditions at any time by notifying us and following the specific instructions provided in our response. If either party terminates these Terms and Conditions for any reason, we will cease providing you with our services, and you will no longer be able to access your Account or the Software. We reserve the right to modify or terminate these Terms and Conditions and/or your Account and/or contract for any reason, without notice, at any time.

Termination of the Terms and Conditions shall not affect any rights or obligations that arose prior to the date of termination.

Please note that no refunds will be payable to you upon termination of these Terms and Conditions.

3. Services

3.1 Account

To access and use the Services, you must register for a QFREEMART account ("Account").

To open an Account, you must meet the following requirements:

- Meet the age criteria of either (i) being 18 years old or (ii) attaining the age of majority in the jurisdiction where you reside and from which you open an Account.
- If you are registering for the Services on behalf of your employer, your employer will be considered the Vendor Store Owner. In such cases, it is necessary for you to use the email address provided by your employer. By doing so, you confirm and guarantee that you possess the authority to legally bind your employer to our Terms of Service.
- Complete the registration process to create a user account (Account).
- Provide any additional information that may be reasonably requested by us from time to time.

In order to complete your Account registration, it is necessary for you to furnish us with your complete legal name, business address, phone number, a valid email address, and any other information stipulated as required. QFREEMART reserves the right to decline your Account application or terminate an existing Account at our sole discretion, without the need to provide any justification.

By creating an account and/or claiming your business listing, you confirm that all information provided to us during the process is true, accurate, and correct. You also agree to update your information as necessary to ensure its accuracy. If you are creating an account or claiming a business listing, you represent that you are the owner or authorized agent of the business. You are prohibited from impersonating someone else, creating or using an account for anyone other than yourself, providing an email address other than your own, creating multiple accounts or business listings without our authorization, or providing or using false information to gain access to a business listing on the Services that you are not legally entitled to claim. You acknowledge that falsely claiming a business listing may result in substantial economic damages and losses for QFREEMART or third parties, for which you may be held liable.

QFREEMART is a self-serve service for Customers and Vendors. You bear full responsibility for all activities and use of your Account(s), and any such activities or use will be deemed as authorized by you. Consequently, you are solely accountable for the repercussions arising from any misuse of your Account.

QFREEMART is a technology platform that facilitates discovery and communication between Buyers and Vendors. QFREEMART does not buy, sell, or control inventory; Vendors remain the merchant of record. Payments are made directly between Buyer and Vendor. QFREEMART charges Vendors a platform fee/commission for each successfully completed transaction. Users must register with accurate information and maintain confidentiality of login credentials. Location data (GPS) may be collected to enable hyperlocal services, delivery tracking, and service execution.

You acknowledge that you will utilize the email address you provide during the Account opening process, or as subsequently updated by you, as the primary means of communication with you ("Primary Email Address"). It is your responsibility to regularly monitor the Primary Email Address provided to you, ensuring that it is capable of sending and receiving messages. Please note that email communications from you to QFREEMART will only be considered authentic if they originate from your designated Primary Email Address.

Password: It is your responsibility to ensure the security of your password. QFREEMART shall not be held liable for any loss or damage arising from your failure to maintain the security of your Account and password. We reserve the right to request additional security measures at any time, and we retain the discretion to modify these requirements as deemed necessary. It is essential that you maintain the confidentiality of any password or secure login method you create and take necessary precautions to prevent unauthorized access to your email account or mobile phone. If another person gains access to your account through these means, you will be held responsible for any items they order, and we shall not be liable for any additional losses you may incur, except in cases where the unauthorized access resulted from our failure to ensure the security of your password.

You have the option to close your account at any time by submitting a request to do so through the account section of our website or by contacting us using the provided contact details.

QFREEMART cannot provide a guarantee regarding the identity of registered Users, and therefore, it shall not be held liable for any unauthorized use of a registered User's identity by unregistered third parties. Users are obligated to promptly notify you through the communication channels provided if their credentials are stolen, disclosed, or lost.

3.2 Profile

During the registration process, Users are required to provide specific details, including their username, email address, telephone number, and bank card information, among other necessary information.

After completing the registration, all Users will have the ability to access, update, modify and make publicly available their profiles as they see fit. The App is unable to verify the accuracy of the representations made by the user during the creation and maintenance of their profile. Consequently, the App cannot be held responsible for any inaccuracies in the data displayed on a user's profile.

It is important to note that QFREEMART does not store users' payment data. Instead, such payment information will be processed and stored by the designated payment service provider in accordance with the terms outlined in these Terms and the Privacy Policy.

3.3 Service Availability

Each Vendor has the freedom to select and oversee the area in which they are capable of fulfilling orders and conducting deliveries. Such area may be subject to change based on factors such as but not limited to weather conditions or service demand. This flexibility ensures that the Items you order are delivered to your door in optimal condition.

The operating hours of each Vendor are determined by them individually. As a result, the availability of our Service and the range of Vendors from which you can place orders depend on the Vendors operating in your area. If you attempt to place a delivery order outside of a Vendor's delivery area or operating hours, or if the Application is inaccessible for any reason, we will inform you that ordering is not possible.

Services might not be available in situations like server and other hardware malfunction, connectivity problems, software errors, and other issues that may arise from time to time. Additionally, the User's mobile phone or tablet may not be updated to the required software version or may suffer from other technical difficulties that may prevent the User from accessing or using QFREEMART's services. These technical problems may cause interruptions or delays in the provision of QFREEMART's services, and may affect the User's ability to access or use the Platform

The User agrees to indemnify and hold harmless QFREEMART and its affiliates, officers, directors, employees, agents, and other users from any and all claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from or related to any technical problems that may result in the unavailability of QFREEMART's services. The User acknowledges that QFREEMART and its affiliates, officers, directors, employees, agents, and other users are not responsible for any loss or damage that may result from the unavailability of QFREEMART's services due to technical problems, and the User hereby releases QFREEMART and its affiliates, officers, directors, employees, agents, and other users from any liability in connection with such unavailability.

3.4 Platform charges

Specific usage of services ("Paid Services") such as but not restricted to Order Placement are conditional upon payments of associated charges ("Platform Charges") by the User to the Platform. The Platform Charges are published on the Platform and shall be read and interpreted in conjunction with this Agreement.

By utilizing the Paid Services, you consent to pay the fees in accordance with these Terms, and such fees shall not be construed in any manner other than for the provision of access to the resources described at the time of subscription. QFREEMART bears no warranty or liability whatsoever in connection with Paid Services

Paid services and access to platform features are provided on per account basis. We may introduce new or cancel existing paid services and features at any time and change pricing from time to time. You will be informed about any of the changes at least one month in advance via email and/or on our Platform.

Platform Charges shall be applicable per single Order, shall be prepaid and are non-refundable. All prices for Paid Services, including taxes, are calculated in local currency (INR for India) and the credit card will be charged in local currency (INR for India). Unless otherwise stated on the Order Form, all undisputed invoices shall be payable on the schedule provided in the Order Form. The assignment of the order to the correspondent vendor shall be contingent upon the payment and confirmation of payment of the platform charges.

The Customer shall pay all Platform Charges to the Company in advance and the Customer hereby permits the Company to take credit and debit card payments in advance upon the issue of each invoice. The Platform Charges in force and set out in the online price list of the Company at the date and time of each invoice. In case of an unsuccessful charge to credit card, we'll automatically suspend paid features of your plan until your payment can be processed.

Specific additional features and benefits may vary depending on the subscription chosen by the user.

3.5 Platform charges payments

The Customer is responsible for providing accurate information when obtaining the Services and confirming that the banking and card details used belong to them and have sufficient funds or credit to cover the Fees. If the credit card used for payment expires, the Customer must provide information for a different valid credit card. By using a credit card, the user represents and warrants that they are authorized to use it and that any charges can be billed to that credit card without rejection. Any disputed amounts shall not affect the payment of non-disputed amounts.

In the event that the third-party payment processor is unable to process the credit card, the Order placement is suspended.

Payments may be completed through the Stripe payment system. We do not store or share any personal information associated with a payment (like Credit Card number, owner, or expiration date). Some information available in Stripe is stored on /Stripe as part of the transaction history. More information about what information is stored and processed by payment processors is available on our Privacy Policy page.

Regarding digital transactions, you acknowledge that errors related to such transactions may result in a reversal of the transaction, fees, claims, penalties, or chargebacks from the financial institution or payment services provider that issued the payment card. You acknowledge that the financial institution or payment services provider that issues or supports the designated payment method linked to the account determines any amount reversed, returned, or charged back. The vendor is obligated to follow the instructions of that financial institution or payment services provider.

You agree that you will be responsible for resolving any disputes with the financial institution that issued your card or manages your account. You acknowledge that the vendor is not obligated to recall funds and will not be held liable if it is unable to partially or fully recall the funds subject to the dispute. Please note that you may not be eligible to receive a refund if you failed to keep the security details relating to your card safe or if you are a victim of financial fraud, even if the transaction was done by third parties without your knowledge or permission.

The customer agrees to indemnify and hold harmless QFREEMART from any and all claims, damages, liabilities, costs, and expenses, arising from or related to the customer's use of the QFREEMART platform and any disputes related to the vendor's ability to accept payments. The customer acknowledges that not all vendors may be able to accept payment by all means at all times and that the vendor has no obligation to accommodate such payment methods, other than the one selected by the customer at the time of placing the order.

4. Usage

4.1 Basic Usage Terms

This is a License to use and access the Platform for its intended purpose and is not a transfer of title. The Platform and certain materials available on or through the Platform are content we own, authored, created, purchased, or licensed (collectively, our "Works"). Our Works may be protected by copyright, trademark, patent, trade secret, and/or other laws, and we reserve and retain all rights in our Works and the Platform. We grant you a conditional, revocable, non-sublicensable, non-transferable and non-exclusive and limited license to access and use our Platform and Works solely for your personal use, except where otherwise specified and conditioned upon your compliance with these Terms of Service. You may not otherwise reproduce, distribute, communicate to the public, make available, adapt, publicly perform, link to, or publicly display the Platform and Works or any adaptations thereof unless expressly set forth herein. You are not allowed to reproduce, download, distribute, transmit, broadcast, display, sell, license, alter, modify or otherwise copy or reproduce our Works or Content that does not belong to you, in whole or in part. Such conduct would exceed the scope of your license and constitute copyright infringement.

You are not allowed to rent, lease, loan, trade, sell/re-sell or otherwise monetize the Services or related data or access to the same, without QFREEMART's consent

You are responsible for maintaining the confidentiality of your account credentials. You consent to the collection and use of precise location data (GPS) to enable hyper-local listing, routing, queue/appointment features, delivery tracking, and service execution. Automated decision-making (recommendations, fraud detection, queue prediction, matching) may be used to operate the Platform

You are responsible for making all arrangements necessary for you to have access to the Platform, and ensuring that all persons who access the Platform through your internet connection are aware of these Terms of Service and comply with them. We will not be liable if, for any reason, any part of the Platform is unavailable at any time or for any period. From time to time, we may restrict access to some parts of the Platform, or the entire Platform, to users, including registered users. You should use the Platform only in strict accordance with the present Terms and in accordance with your local laws and community standards; the Platform may not be accessed or used where prohibited by law. You are not allowed to monitor the Services' availability, performance or functionality for any competitive purpose or otherwise engage in "framing," "mirroring," or simulating the appearance or function of the Services;

You understand and agree that you may not make unauthorised copies, incorporate any portion thereof into any other program or product, modify, adapt, translate, reverse engineer, disassemble, decompile or create any derivative works or any content included therein, including any files, tables or documentation (or any portion thereof) or determine or attempt to determine any source code, algorithms, methods or techniques embodied by the Services or any derivative works thereof

You also understand that we do not carry out any prior or subsequent verification or any kind of criminal record check on our USERS and thus we make no statement or warranty regarding our USER's behaviour. Therefore, you agree to remain vigilant and take all necessary precautions when interacting with other USERS. Any information you choose to share remains your sole responsibility and is done at your own risk. Use of the Platform for the purpose of engaging in unlawful or illegal activities is prohibited.

The information presented on or through the Platform is made available solely for general information purposes. You understand and agree that, as a service provider, QFREEMART is only acting as an intermediary and shall not be held responsible for the activities engaged by you

through the Platform. QFREEMART does not endorse any Content or submission and expressly disclaims any and all liability in connection with Content or submissions. We do not warrant the accuracy, completeness, or usefulness of information. Any reliance you place on such information is strictly at your own risk. We disclaim all liability and responsibility arising from any reliance placed on such materials by you or any other visitor to the Platform, or by anyone who may be informed of any of its contents. User acknowledges and agrees that QFREEMART has no direct or indirect control over the monitoring, supervision, prior approval, or review of the Content provided by Users through the Platform. You acknowledge that QFREEMART does not supervise, direct, control or monitor Users and agree that QFREEMART is not responsible for the performance depicted in the content they upload. Any statements and/or opinions expressed in relation to any content are the sole expression and responsibility of the individual or legal entity who originated them. We are not responsible, or liable to you or any third party, for the content or accuracy of any materials provided by any third parties.

For the purposes of these Terms, Users recognises that a Vendor is understood to be solely an independent contractor and in no way should a Vendor or its representative be considered an employee, agent, or partner of QFREEMART. Furthermore, QFREEMART does not endorse any particular User and nothing shall imply, create the impression or understanding, other than the one stipulated by this Terms, of any guarantee, commitment, promotion, or any type of facilitation on QFREEMART's part on behalf of any User.

You agree and understand that QFREEMART cannot ensure the security or privacy of information you provide through the internet and the Platform. You agree that we are not responsible for others (including other users, vendors or any third party) content or information. We cannot always prevent this misuse of our Services, and you agree that we are not responsible for any such misuse.

4.2 Prohibited Activities and Usage Restrictions

You agree and understand that, under this terms, it is prohibited to deploy scripts, programs (such as but not restricted to viruses, Trojan horses, worms, logic bombs, time bombs, cancelbots, corrupted files or any other similar software, program, or material which is malicious or technologically harmful or that may damage the operation of another's property), software, applications, automatic device, process, routines or any means to or designed to:

- only use the Platform to access and/or use the Services;
- interrupt, destroy or limit the functionality of any computer software or hardware or telecommunications equipment, including by engaging in any denial of service attack, distributed denial-of-service attack or similar conduct;
- harm, interfere with the operation of, or access in an unauthorized manner, services, networks, servers, or other infrastructure;
- disable, overburden, damage, or impair the site or interfere with any other party's use of the Platform, including their ability to engage in real time activities through the Platform
- interfere with the proper working of the Platform or that shortcut or alter Platform functions to run or appear in ways that are not intended by the Platform's design;
- exploit errors in design, features which are not documented, and/or bugs to gain access that would otherwise not be available.
- access the Platform for any purpose, including monitoring or copying any of the material on the Platform without our prior written consent;
- block or interfere with the display of any advertising on the Platform, or for the purpose of implementing, modifying or updating any software or filter lists that block or interfere with the display of any advertising on the Platform;
- attempt to gain unauthorized access to, interfere with, damage, or disrupt any parts of the Platform, the server on which the Platform are stored, or any server, computer, or database connected to the Platform;
- download, monitor or copy any of the material on the Platform or for any other unauthorized purpose;
- alter or modify any part of the Platform or its content, including ads;
- use the Platform in any manner to provide service bureau, commercial time-sharing or other computer services to third parties;
- use components of the Platform to run applications not running on the Platform.
- not authorize any third party to access and/or use the Services on Your behalf using any automated process such as a BOT, a spider or periodic caching of information stored by the Services on Your behalf without a separate written agreement with QFREEMART
- will not use any software or hardware that reduces the number of Users directly accessing or using the Services (sometimes called 'multiplexing' or 'pooling' software or hardware)
- otherwise attempt to interfere with the proper working of the Platform
- allow the Platform to automatically download and install updates from time to time from QFREEMART which are designed to improve, enhance and further develop the Platform and may take the form of bug fixes, enhanced functions, new software modules or completely new versions.

You agree and understand that, under this terms, it is prohibited to exceed your authorized access to any portion of the Platform as well as remove, delete, alter, circumvent, avoid, or bypass:

- any digital rights management technology, encryption or security tools used anywhere on the Platform or in connection with our services;
- any age verification processes, technologies or security tools used anywhere on the Platform or in connection with our services;

Vendors must comply with all applicable laws, licenses, and sectoral standards. Prohibited categories include illegal, dangerous, or regulated goods/services (e.g., weapons, narcotics, counterfeit items, unauthorized medical services). Sector-specific compliance (pharmacy, medical, legal, financial, CA/lawyer services) is solely the Vendor's responsibility

You agree and understand that, under this terms, it is prohibited to collect or store personal data about anyone;

4.3 Confidentiality

You agree that you are solely responsible (to us and to others) for the activity that occurs under your account including any and all uses resulted from the usage of your login information. Therefore, it is important that you keep your account password confidential and that you do not disclose it to any third party. You must not sell, rent, lease, share, or provide access to your account to anyone else, including charging anyone

for access to administrative rights on your account. In the event that you become aware of, or reasonably suspect, any security breach, including, without limitation, any loss, theft, or unauthorized access or disclosure of your login information, you must immediately notify us and modify your login information. We are not liable for your losses caused by any unauthorized use of your account and you hereby specifically waive any such claim and agree to defend, hold harmless, and indemnify you against any such claims made against it by third parties.

4.4 Security.

We prioritize the integrity and security of your personal information. However, we cannot provide an absolute guarantee that unauthorized individuals will never circumvent the security measures of the Platform or misuse the personal information you provide to us. Therefore, it is important to acknowledge that you provide your personal information at your own risk.

5. Content

QFREEMART does not endorse any Content submitted by any User or other licensor, or any opinion, recommendation, or advice expressed therein, and the Platform expressly disclaim any and all liability in connection with Content.

5.1 Basic Content Terms

We expect and demand that you comply with all applicable laws when using the Platform and when submitting or posting Content to the Platform. We are not responsible for any Content that violates community standards in your community. If you are seeking information regarding any illegal or inappropriate activities, you agree to leave the Platform immediately. If you are unsure whether or not Content will violate a law, you are urged to contact an attorney prior to posting the Content. We cannot enforce every jurisdiction's laws for all Content that is posted to the Platform. As such, we are not responsible for the Content of the Platform.

You must evaluate, and bear all risks associated with, the use of any Content, including any reliance on the accuracy, completeness, or usefulness, or lawfulness of such Content. In this regard, you acknowledge that you may not rely on any content created by users and transmitted through the Platform.

If any of the Content that you post to or through the Platform contain ideas, suggestions, documents, and/or proposals to us, we will have no obligation of confidentiality, express or implied, with respect to such Content, and we shall be entitled to use, exploit, or disclose (or choose not to use or disclose) such Content in our sole discretion without any obligation to you whatsoever (i.e. you will not be entitled to any compensation of any kind from us under any circumstances).

5.1.1 Content Ownership and Quality Assurance

You represent and warrant that with respect to all Content you will upload on the Platform:

1. the Content does not contravene to any applicable laws and does not, subject the Platform to any claims, demands, lawsuits, regulatory actions or any actual, potential or risk of liability, or any threats thereof;
2. your Content is not confidential and therefore you authorize Users to access and view your Content on QFREEMART for their own lawful and personal use, and/or in accordance with any licenses that you grant.
3. you own the rights or have a valid license to offer and use the Content or parts of it on the Platform and that the Content is royalty-free does not infringe on the rights (including but not limited to copyrights, patents, trademarks, trade secrets or other proprietary rights.) of a third party and, that you have obtained the consent and release for every individual (if any) appearing in your Content, including the right for you to use and upload the Content on the Platform; if your Content includes or uses any third-party material, you have secured all rights, licenses, written consents and releases that are necessary for the use of such third-party property in your Content and for the subsequent use and exploitation of that Content on QFREEMART
4. the Content is of satisfactory quality, taking account of any description of the Content, the price, and all other relevant circumstances including any statement or representation which you make about the nature of the Content on your account or in any advertising. Also the content is as described by you and reasonably suitable for any purpose for which it has made known for
- 5 If the content you submit is a review, you confirm that you are the sole author of the review and that it accurately reflects an actual experience you had. You also confirm that you were not paid or otherwise compensated for authoring or posting the review, and that you had no financial, competitive, or personal incentive to post a review that was not a fair expression of your honest opinion.

You acknowledge and agree that any personal information you disclose in your content may make you personally identifiable, and you assume all risks associated with such disclosure.

If we believe that your Content violates any criminal laws or any of the Platform's Terms, your account will immediately be suspended, you will be banned from the Platform without notice and we will report you to law enforcement authorities

5.2 Content Rules & Guidelines

Without diminishing the scope of these Terms, when using the Services, you expressly agree not to publish or transmit any content (including reviews) or engage in any conduct that, in our sole discretion,

1. Violates any applicable state laws or our Guidelines and Policies;
2. Content or items that may be considered culturally or religiously offensive in any way; content or items which may not be considered to be in compliance with Islamic law, rules, morals, values, ethics and traditions

3. Harms minors in any way.
4. Publish or transmit any content that is harmful, threatening, abusive, harassing, tortious, indecent, defamatory, discriminatory, vulgar, profane, obscene, libelous, hateful, or otherwise objectionable, and invades another's privacy or encourages money laundering or gambling.
5. Causes annoyance, inconvenience, or needless anxiety or be likely to upset, embarrass, alarm, or annoy any other person such as but not restricted to content that contains any defamatory, obscene, indecent, abusive, offensive, harassing, blackmailing, intimidating, threatening, violent, hateful, inflammatory, or otherwise objectionable act or material.
6. Promote illegal activities (any act that, constitutes, depicts, advocates, discusses, assists, promotes, encourages, provides instructions, solicits for a criminal offence including promoting or facilitating of such acts) or otherwise unacceptable content that contains or depicts:
 1. Illegal drugs or drug paraphernalia (Please check your local laws for what drugs are deemed illegal.);
 2. Weapons or firearms, explosives, radioactive substances;
 3. Trafficking of humans , animals , products or services
 4. Terrorism
 5. Violence and/or abuse, towards others or self, inflicting harm / torture or suicide, explicit or implicit. (including but not limited to cannibalism, horror/snuff, or any promotion of violence or illegal activities)
 6. Escorting, prostitution, sex trafficking, and/or in-person meet-ups;
 7. Cruelty towards people and/ or animals such as but not restricted to Crushing of any animals, Bestiality, or sexually explicit scenes in which animals appear;
 8. Hateful Content – Offensive or hate speech and display based on race, color, sex, religion, gender, disability, nationality or towards any other disadvantaged or marginalized group is NOT permitted.
6. Submit reviews that are inauthentic, knowingly erroneous, or unrelated to the goods and services being reviewed.
7. It invades another person's privacy or encourages illegal activities like money laundering or gambling.
8. Share material that violates the standards of good taste or the standards of the Services.
9. Infringe upon the intellectual property rights or other rights of any other person, including patents, trademarks, trade secrets, copyrights, or other intellectual property.
10. Accuses others of illegal activities or describes physical confrontations. or falsely states, misrepresents, or conceals your affiliation with another person or entity.
11. Constitutes deceptive advertising or results from or causes conflicts of interest such as but not limited to counterfeit or stolen items;
12. Violates any contract or fiduciary relationship, such as disclosing proprietary or confidential information in breach of employment, consulting, or non-disclosure agreements.
13. Alleges health code violations that require reporting to the healthcare department.
14. Violate the legal rights of any person, including rights of publicity and privacy, or contain material that could result in civil or criminal liability under applicable law.
15. Engage in deceptive practices or fraudulent activities, including misleading requests for money or posting manipulated media (digital forgeries) that mislead about elections, civic processes, emergencies, or induce panic.
16. Involves commercial activities, such as spam, surveys, contests, pyramid schemes, or postings and reviews that are submitted or removed in exchange for payment. It also includes other advertising materials.
17. Content or items that may threaten national security;
18. Impersonate any person or misrepresent affiliation with any person or organization, or create the false impression of endorsement from us or any other person or entity (including deepfakes).
19. Request or share personal information of any person, including financial information, email addresses, telephone numbers, or mailing addresses, without their written consent.
20. Disrupt interactions between members or engage in behavior that negatively affects with any other user and/ or it's content.
21. Prejudice, harm, or in any way damage the image, reputation, interests, activities, or legal standing of QFREEMART.
22. Post false or misleading information with the intent to mislead or harass for financial gain or to cause harm.
23. Modifies, copies, scrapes, crawls, displays, publishes, licenses, sells, rents, leases, lends, transfers, or commercializes any rights to the Services or Our Content.
24. Share computer viruses, worms, Trojan horses, or any other harmful computer code or programs that disrupt or damage the functionality of computer software, hardware, mobile devices, or telecommunications equipment.
25. Distributes computer viruses or other code, files, or programs that disrupt or damage computer software, hardware, or electronic communications equipment.
26. Interferes with, disrupts, or destroys the functionality or use of any features of the Services, servers, or networks connected to the Services.
27. Illegally accesses or "hacks" our proprietary or confidential records, or those of another customer or any other individual.
28. Violates any restrictions mentioned in robot exclusion headers or bypasses measures employed to prevent or limit access to the Services.
29. Removes, circumvents, disables, damages, or interferes with security-related features or features that enforce limitations on the use of the Services.
30. Disguises or attempts to disguise the origin of Your Content, including submitting it under false names, false pretenses, or by disguising the IP address.
31. Decompiles, reverse engineers, disassembles, or attempts to derive source code from the Services.
32. Collects, accesses, or stores personal information about other customers of the Services.
33. Is posted by a bot.
34. remove any proprietary notices or labels on the Content

5.3 Intellectual Property Rights.

QFREEMART respects the intellectual property rights of others and requires its users to do the same. QFREEMART shall not be liable for any copyright infringement arising out of materials posted on or transmitted through the QFREEMART Platform by end users or any other third parties. In appropriate circumstances and at its discretion, QFREEMART may remove or disable access to material on the Services that infringes upon the copyright rights of others. QFREEMART may also remove or disable links or references to an online location that contains infringing material or infringing activity. If any customers of the Services repeatedly infringe on others' copyrights, QFREEMART may terminate those individuals' rights to use the Services in its sole discretion.

All Platform content, trademarks, logos, and software are owned by or licensed to QFREEMART. You grant QFREEMART a limited, worldwide, royalty-free licence to host and display content you upload for Platform operation

5.3.1 Copyright Infringement Notification Procedure

If you believe that your copyright has been or is being infringed upon by material found in the Services, you are required to follow the below procedure to file a notification:

- i. Identify in writing the copyrighted material that you claim has been infringed upon;
- ii. Identify in writing the material on the Services that you allege is infringing upon copyrighted material, and provide sufficient information that reasonably identifies the location of the alleged infringing material (for example, the user name of the alleged infringer and the business listing it is posted under);
- iii. Include the following statement: "I have a good faith belief that the use of the content on the Services as described above is not authorized by the copyright owner, its agent, or law";
- iv. Include the following statement: "I swear under penalty of perjury that the information in my notice is accurate and I am the copyright owner or I am authorized to act on the copyright owner's behalf";
- v. Provide your contact information including your address, telephone number, and e-mail address (if available);
- vi. Provide your physical or electronic signature;
- vii. Send a written communication to contactus@qfreemart.in.

Please note that you may be subject to liability if you knowingly make any misrepresentations on a take-down notice.

5.4 Waiver of Rights to User Content.

You understand that we do not guarantee any confidentiality with respect to any Content you contribute. Do not upload content that you do not wish to share in public.

Kindly be advised that we retain the right to disclose information concerning you to third parties or government entities if we reasonably believe that such disclosure is necessary to: (i) address suspected unlawful activities; (ii) enforce or implement our Terms and Privacy Policy; (iii) comply with legal proceedings or other government investigations, such as search warrants, subpoenas, statutes, court proceedings, or other legal processes/notices served upon us; or (iv) safeguard our rights, reputation, and property, as well as those of our Customers, affiliates, or the public at large.

By accepting these terms, you voluntarily relinquish any and all rights of privacy, publicity, or similar rights pertaining to your Content, or any portion thereof. In the event that certain moral rights are non-transferable or non-assignable, you hereby renounce and undertake to never assert any moral rights, or endorse, uphold, or allow any action based on any moral rights you may possess in relation to any Content you upload to or through the Services.

By accepting these terms, you explicitly authorize us to disclose your identity to any third party asserting that any Content you have uploaded to our Services violates their intellectual property rights or their right to privacy.

We, or duly authorized third parties, retain the right to exercise sole discretion in modifying, cropping, editing, or declining to publish your content.

We reserve the right to remove, disallow, block, or delete any posting you make on our Services if, in our reasonable judgment, your post fails to adhere to the content standards specified in the "Content Rules & Guidelines". Consequently, it is advisable for you to retain copies of any Content you post on the Services on your personal device(s) to guarantee ongoing access to such Content.

QFREEMART endeavors to promptly remove any infringing material from our Services upon becoming aware of it. It is QFREEMART's policy, at its discretion and in appropriate circumstances, to disable or terminate the accounts of users who repeatedly violate copyrights or intellectual property rights of others.

5.5 Linking Your Account to Social Media.

The Platform allows you to link your account to or to post on various third-party social media or social-networking sites ("Third-Party Sites"). If you choose to do so, you **agree and acknowledge to bear all risks that could result from such linking**. By linking your account or by posting Content to Third-Party Sites, you hereby understand and acknowledge that QFREEMART has no control whatsoever on such Third-Party Sites and that it is your sole responsibility to ensure that you understand, agree, and comply with such Third-Party Sites' terms and conditions.

5.6 Third-Party Content and Reference Sites

In addition to the User generated Content, we may provide other third-party content or external hyperlinks on the Platform (collectively, "Third-Party Content"). We do not control or endorse any Third-Party Content and make no representation or warranties about the Third-Party Content, including its accuracy or completeness.

We do not create Third-Party Content, update it, or monitor it. Thus, we are not responsible for any Third-Party Content or external hyperlinks on the Platform.

You are responsible for deciding if you want to access or use third-party websites or applications that link from the Platform ("Reference Sites"). We do not control or endorse any such Reference Sites or the information, materials, products, or services contained on or accessible through them.

Certain sections of the QFREEMART Platform may contain advertising information, promotional material, or other content submitted by third parties or customers. The responsibility for ensuring that such material complies with applicable international and national laws rests solely

with the party providing the information/material. Any correspondence or business dealings with advertisers other than QFREEMART found on or through the QFREEMART Platform and mobile apps, including payment and delivery of related goods or services, and any other terms, conditions, warranties, or representations associated with such dealings, shall be solely between you and such advertiser. QFREEMART will not be responsible or liable for any errors or omissions, inaccuracies in advertising material, or any loss or damage of any kind incurred as a result of any such dealings or the presence of such other advertiser(s) on the QFREEMART Platform and mobile application. Accordingly, we are not making any representations or warranties about the Reference Sites.

5.7 Content Liability

QFREEMART does not exercise control over how Users utilize the Platform and is not obligated to do so. Therefore, QFREEMART does not guarantee that Users will use the Platform in compliance with these General Terms of Use or in a diligent and prudent manner.

QFREEMART does not verify the identity of Users or the accuracy, validity, completeness, or authenticity of the data provided by them, and is not obligated to do so.

QFREEMART will not inspect the products sent or delivered through orders on the Platform. Consequently, Users release QFREEMART from any liability arising from the availability and transportation of products that require specific permissions or licenses, or that are prohibited by applicable legislation.

QFREEMART disclaims any responsibility for damages of any kind resulting from Users' illegal use of the Platform or the provision of untrue, invalid, incomplete, or false information by Users to other Users. This includes, but is not limited to, any loss or damage arising from a User impersonating a third party in any communication conducted through the Platform. Specifically, QFREEMART assumes no liability for the use of the Platform or any orders made by a third party using a User's account.

QFREEMART disclaims any responsibility for the opinions expressed in customer reviews or ratings for Vendors on QFREEMART are solely those of the customers and do not reflect the views of QFREEMART. QFREEMART provides a platform for customers to share their opinions and reviews of Vendors, and each review posted on QFREEMART represents the personal opinion of the customer or reviewer only.

However, QFREEMART reserves the right to partially or fully restrict access to the Platform for certain Users, as well as to cancel, suspend, block, or remove certain types of content using appropriate technological tools if it becomes aware of, or identifies signs that, the activity or stored information is illegal or infringing upon a third party's rights or property. QFREEMART may also implement necessary filters to prevent the uploading of unlawful or harmful content to the Internet. By making content available through the Platform, Users grant QFREEMART all rights to exploit the supplied content.

Furthermore, QFREEMART retains the right to determine the algorithms and parameters used for ranking vendors (Vendors and/or stores) and products displayed on the Platform, and to modify and update them. The User acknowledges and accepts that the ranking may depend on various factors and metrics, including but not limited to store proximity, accessibility, previous reviews, and any agreements QFREEMART has reached with vendors or product distributors regarding their positioning and visibility.

5.8 Trademarks

The Company's name and logo; the term QFREEMART ; the Platform 's logo; and all related names, domain names, logos, product and service names, designs, and slogans, as well as the Platform 's look and feel, including all page headers, custom graphics, button icons, and scripts are trademarks or trade dress of the Company, its affiliates, or licensors.

You must not use those marks in connection with any product or service that is not ours, in any manner that is likely to confuse consumers, or in any way that disparages or discredits us, without first obtaining our prior written permission. Any use of these marks must be under any guidelines that we may provide you from time to time. All other service marks, trademarks, trade names, logos, product and service names, designs, and slogans on this Platform are the marks of their respective owners. Reference on the Platform to any products, services, processes, or other information, by trade name, trademark, manufacturer, supplier, or otherwise, does not constitute or imply our endorsement, sponsorship, recommendation, or any other affiliation.

6. Interactions

QFREEMART is fully committed to openness and freedom of expression. Our core principles are:

Respect: QFREEMART promotes and upholds the value of respect in our community, encompassing communications, security, privacy, and policymaking.

Safety: QFREEMART prioritizes safety in all interactions by leveraging technology, processes, partnerships, and the involvement of our community members.

Cooperation: QFREEMART actively collaborates with our community, industry partners, law enforcement, and governments to address challenges within and beyond the online realm. This collaboration enhances our ability to combat abuses and promote freedom of speech.

QFREEMART maintains a clear stance of non-involvement in the interactions between users. This includes, but is not limited to, refraining from any form of representation, mediation, arbitration, judgment, or enforcement of such interactions. Our role is to provide a platform that facilitates communication and collaboration while respecting the autonomy and independence of our users.

Users may report any activities of any other user which violate applicable laws and/or any of the terms of this Agreement. Users are solely responsible for the execution and/or fulfillment of agreements they enter into with one another. QFREEMART shall not be liable for breaches of duty in relation to agreements entered into between users.

6.1 Safe Platform Obligations and Guidelines

By entering into this agreement, you acknowledge and agree to oblige to the following in order to maintain a safe platform:

1. demonstrate safe, civil, and respectful behaviour towards any and all users
2. do not violate (or help or encourage others to violate) these Terms or any of our policies
3. do not sell, license, or purchase any account or data obtained from using our Service.
4. do not insult or disparage another individual on the basis of their attributes such as but not restricted to intellect, appearance, personality traits, or hygiene, race, ethnicity, national origin, religion, caste, sexual orientation, sex, gender, gender identity, serious disease, disability, immigration status
5. do not disparage victims of violent tragedies
6. do not engage in, coordinate, promote or facilitate cyberstalking or trolling
7. do not engage in, coordinate, promote or facilitate speech claiming individuals or groups with protected attributes are physically, mentally, or morally inferior or referring to them as criminals, animals, inanimate objects, or other non-human entities
8. do not engage in, coordinate, promote or facilitate abuse, violence, racism or hateful speech, harassment, blackmail, bullying, doxxing, swatting, provoking or antagonising, hurting, scaring, creating distress, embarrassing or upsetting people, vandalism or damage to property, poaching or illegal trade of wildlife.
9. praise, promote, glorify or support of extremist and violent ideology, organizations or individuals
10. encourages participation in, or intent to recruit individuals to organized hate groups, terrorist and/or criminal organisations
11. do not engage in, promote, purchase, sale, trade, solicit unlawfully acquired or counterfeit goods
12. do not engage in, promote, purchase, sale, trade, solicit or encourage others to manufacture, use, or trade illicit drugs or other controlled substances
13. do not engage in, promote, share instructions on how to perform without safety precautions extreme or dangerous acts, stunts, sports which could lead to any form of harm
14. do not share instructions on how to artificially increase views, likes, followers, shares, or comments
15. do not engage in selling or buying views, likes, followers, shares, or comments
16. do not promote artificial traffic generation services
17. do not operate multiple QFREEMART accounts under false or fraudulent pretenses to distribute commercial spam or to exert influence and sway public opinion while misleading individuals, our community, or our systems about the account's identity, location, relationships, popularity or purpose

7. Transactions

All transactions between users must be conducted in strict compliance with our Terms of Sale Policy, which can be found at the link provided. This policy outlines the terms and conditions that govern the sale of goods or services on our platform. Users are required to adhere to these terms and conditions when engaging in any transaction on our platform.

The Terms of Sale Policy sets out the rules and guidelines that users must follow when buying or selling goods or services on our platform. It covers important topics such as payment, delivery, returns, and refunds. Users must ensure that they fully understand and comply with these terms and conditions before engaging in any transaction on our platform.

Any violation of the Terms of Sale Policy may result in the suspension or termination of a user's account, as well as other legal consequences. Therefore, it is essential that users carefully review and understand the policy before engaging in any transaction on our platform.

By using our platform, users agree to be bound by the Terms of Sale Policy and all other applicable policies and guidelines. We reserve the right to modify or update the policy at any time, and users are responsible for regularly reviewing the policy to ensure compliance with any changes.

8 Third Party Sites or Services

Through hyperlinks, APIs, or other means on the Software, we may provide you with access to third-party sites or services (including but not limited to WhatsApp, Instagram and Google). Please note that we have no control over and do not monitor such third-party sites, and we will not be liable to you for the content of these sites or your use of them.

Additionally, we may present you with other third-party services on the Software, such as Delivery Company services and payment gateways (such as but not limited to Stripe). These services may be provided either through direct integration or subject to a separate agreement between you and the service provider. Please note that we will not be liable to you for the use of such services or for any failures on the part of these service providers.

9 Disclaimers, Liabilities and Indemnification

9.1 Disclaimer of warranties

YOU USE THE WEBSITE AT YOUR SOLE RISK. WE PROVIDE THE WEBSITE "AS IS" AND "AS AVAILABLE". TO THE FULLEST EXTENT PERMITTED BY LAW, THE WEBSITE, ITS OFFICERS, DIRECTORS, OR EMPLOYEES DISCLAIM ALL WARRANTIES OF ANY KIND AND SHALL NOT BE LIABLE TO YOU FOR ANY DIRECT, INDIRECT, INCIDENTAL, SPECIAL, PUNITIVE, OR CONSEQUENTIAL DAMAGES RELATED TO THE WEBSITE AND GOODS OR SERVICES OBTAINED THROUGH THE WEBSITE, WHETHER EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. YOU WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGE TO YOUR COMPUTER SYSTEM OR LOSS OF DATA THAT RESULTS FROM YOUR USE OF THE WEBSITE. WE MAKE NO WARRANTY OR REPRESENTATION ABOUT THE ACCURACY OR COMPLETENESS OF THE WEBSITE'S CONTENT OR THE CONTENT OF ANY SITES LINKED TO THE WEBSITE OR THAT THE WEBSITE WILL MEET YOUR REQUIREMENTS AND ASSUME NO LIABILITY OR RESPONSIBILITY FOR ANY :

- ERRORS, MISTAKES, OR INACCURACIES OF CONTENT,

- PERSONAL INJURY OR PROPERTY DAMAGE, OF ANY NATURE WHATSOEVER, RESULTING FROM YOUR ACCESS TO AND USE OF THE WEBSITE OR OUR SERVICES,
- ANY UNAUTHORIZED ACCESS TO OR USE OF OUR SECURE SERVERS AND/OR ANY AND ALL PERSONAL INFORMATION AND/OR FINANCIAL INFORMATION STORED THEREIN,
- ANY INTERRUPTION OR CESSATION OF TRANSMISSION TO OR FROM THE WEBSITE OR OUR SERVICES,
- ANY BUGS, VIRUSES, TROJAN HORSES, OR THE LIKE WHICH MAY BE TRANSMITTED TO OR THROUGH THE WEBSITE OR OUR SERVICES BY ANY THIRD PARTY, AND/OR
- ANY ERRORS OR OMISSIONS IN ANY CONTENT OR FOR ANY LOSS OR DAMAGE OF ANY KIND INCURRED AS A RESULT OF THE USE OF ANY CONTENT POSTED, EMAILED, TRANSMITTED, OR OTHERWISE MADE AVAILABLE VIA THE WEBSITE OR OUR SERVICES.

YOU SPECIFICALLY ACKNOWLEDGE THAT THE WEBSITE OFFICERS, DIRECTORS, EMPLOYEES, SHALL NOT BE LIABLE FOR CONTENT OR FOR THE DEFAMATORY, OFFENSIVE, OR ILLEGAL CONDUCT OF ANY THIRD PARTY, AND THAT THE RISK OF HARM OR DAMAGE FROM THE FOREGOING RESTS ENTIRELY WITH YOU. YOU FURTHER ACKNOWLEDGE THAT ANY CONTENT UPLOADED TO THE SITE MAY BE VIEWED, DOWNLOADED, REPUBLISHED, AND DISTRIBUTED – POTENTIALLY IN VIOLATION OF YOUR RIGHTS OR THIS AGREEMENT – AND THAT YOU ASSUME SUCH RISKS AS A MATERIAL PART OF THESE TERMS OF SERVICE. YOU AGREE NOT TO FILE ANY ARBITRATION CLAIM, LAWSUIT OR PROCEEDING INCONSISTENT WITH THE FOREGOING LIABILITY LIMITATIONS.

THE WEBSITE DOES NOT WARRANT, ENDORSE, GUARANTEE, OR ASSUME RESPONSIBILITY FOR ANY PRODUCT OR SERVICE ADVERTISED OR OFFERED BY A THIRD PARTY THROUGH THE WEBSITE OR OUR SERVICES OR ANY HYPERLINKED SERVICES OR FEATURED IN ANY BANNER OR OTHER ADVERTISING, AND, THE WEBSITE WILL NOT BE A PARTY TO OR IN ANY WAY BE RESPONSIBLE FOR MONITORING ANY TRANSACTION BETWEEN YOU AND THIRD-PARTY PROVIDERS OF PRODUCTS OR SERVICES. AS WITH THE PURCHASE OF A PRODUCT OR SERVICE THROUGH ANY MEDIUM OR IN ANY ENVIRONMENT, YOU SHOULD USE YOUR BEST JUDGMENT AND EXERCISE CAUTION WHERE APPROPRIATE.

NO INFORMATION OBTAINED BY YOU FROM US OR THROUGH THE WEBSITE SHALL CREATE ANY WARRANTY NOT EXPRESSLY STATED IN THESE TERMS.

THE FOREGOING LIMITATION OF LIABILITY SHALL APPLY TO THE FULLEST EXTENT PERMITTED BY LAW IN THE APPLICABLE JURISDICTION. THESE LIMITATIONS ON OUR LIABILITY TO YOU SHALL APPLY WHETHER OR NOT WE HAVE BEEN ADVISED OF OR SHOULD HAVE BEEN AWARE OF THE POSSIBILITY OF ANY SUCH LOSSES ARISING.

TO THE FULLEST EXTENT PERMITTED BY LAW, ANY DISPUTE YOU HAVE WITH ANY THIRD PARTY ARISING OUT OF YOUR USE OF THE SERVICES, INCLUDING, BY WAY OF EXAMPLE AND NOT LIMITATION, ANY CARRIER, COPYRIGHT OWNER OR OTHER USER, IS DIRECTLY BETWEEN YOU AND SUCH THIRD PARTY, AND YOU IRREVOCABLY RELEASE US AND OUR AFFILIATES FROM ANY AND ALL CLAIMS, DEMANDS AND DAMAGES (ACTUAL AND CONSEQUENTIAL) OF EVERY KIND AND NATURE, KNOWN AND UNKNOWN, ARISING OUT OF OR IN ANY WAY CONNECTED WITH SUCH DISPUTES.

NO CONDITIONS, WARRANTIES OR OTHER TERMS (INCLUDING ANY IMPLIED TERMS AS TO SATISFACTORY QUALITY, FITNESS FOR PURPOSE OR CONFORMANCE WITH DESCRIPTION) APPLY TO THE SERVICES EXCEPT TO THE EXTENT THAT THEY ARE EXPRESSLY SET OUT IN THE TERMS. WE MAY CHANGE, SUSPEND, WITHDRAW OR RESTRICT THE AVAILABILITY OF ALL OR ANY PART OF OUR PLATFORM FOR BUSINESS AND OPERATIONAL REASONS AT ANY TIME WITHOUT NOTICE

9.2 Limitation of liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, YOU AGREE TO DEFEND, INDEMNIFY, AND HOLD HARMLESS QFREEMART AND THE PLATFORM, THE OPERATOR, ITS PARENT, SUBSIDIARY, AND AFFILIATED CORPORATIONS, THEIR OFFICERS, DIRECTORS, SHAREHOLDERS, EMPLOYEES, AND AGENTS, SERVER MAINTENANCE, INDEPENDENT CONTRACTORS, TELECOMMUNICATION PROVIDERS, AGENTS, AND CONTRIBUTORS FROM AND AGAINST ANY AND ALL CLAIMS, DAMAGES, OBLIGATIONS, LOSSES, LIABILITIES, COSTS, DEBT, AND EXPENSES (INCLUDING, BUT NOT LIMITED TO, ATTORNEYS' FEES) ARISING FROM:

- YOUR USE OF AND ACCESS TO THE PLATFORM;
- YOUR VIOLATION OR BREACH OF ANY PART OF THESE TERMS ;
- YOUR VIOLATION OR BREACH OF ANY THIRD PARTY RIGHTS, INCLUDING, WITHOUT LIMITATION, ANY INTELLECTUAL PROPERTY, PROPERTY, OR PRIVACY RIGHT; OR
- ANY CLAIM THAT ALL OR ANY PART OF YOUR CONTENT CAUSED DAMAGE TO A THIRD PARTY.

THIS DEFENCE AND INDEMNIFICATION OBLIGATION WILL SURVIVE THESE TERMS AND YOUR USE OF THE PLATFORM. YOU ALSO AGREE TO DEFEND, INDEMNIFY, AND HOLD HARMLESS QFREEMART AND DEFEND AND INDEMNIFY US SHOULD ANY THIRD PARTY BE HARMED BY YOUR ILLEGAL ACTIONS OR SHOULD WE BE OBLIGATED TO DEFEND ANY CLAIMS INCLUDING, WITHOUT LIMITATION, ANY CRIMINAL ACTION BROUGHT BY ANY PARTY.

YOU AGREE TO INDEMNIFY AND HOLD US HARMLESS FROM ANY LIABILITY THAT MAY ARISE FROM SOMEONE VIEWING YOUR CONTENT. WE WILL PROMPTLY NOTIFY YOU OF ANY SUCH CLAIM OR SUIT, AS THE CASE MAY BE, AND WE MAY DECIDE, AT OUR SOLE DISCRETION, TO COOPERATE (AT YOUR EXPENSE) IN THE DEFENCE OF SUCH CLAIM OR SUIT. WE RESERVE THE RIGHT TO PARTICIPATE IN THE DEFENCE OF SUCH CLAIM OR DEFENCE AT OUR OWN EXPENSE AND CHOOSE OUR OWN LEGAL COUNSEL BUT ARE NOT OBLIGATED TO DO SO. YOU UNDERSTAND AND

ACCEPT THAT NO COMMUNICATION BETWEEN YOU AND OTHER USERS OR UPLOADERS OF THE PLATFORM IS PRIVATE. YOU HEREBY SPECIFICALLY RELEASE US AND ALL UPLOADERS OR OTHER USERS OF THE PLATFORM FROM ANY LIABILITY FOR INVASION OF PRIVACY, DEFAMATION, PUBLICITY, FALSE LIGHT, AND RELATED TORTS, IN THE EVENT THAT YOUR COMMUNICATIONS OR PROFILE ARE MADE PUBLIC. NOTHING CONTAINED IN THIS SECTION IS INTENDED TO LIMIT THE SCOPE OF RELEASES AND/OR INDEMNIFICATION CONTAINED ELSEWHERE IN THESE TERMS.

QFREEMART IS NOT RESPONSIBLE FOR THE ACTS/OMISSIONS OF VENDORS, EXECUTORS, OR DELIVERY AGENTS. TO THE MAXIMUM EXTENT PERMITTED BY LAW, QFREEMART'S AGGREGATE LIABILITY SHALL BE LIMITED TO THE LESSER OF INR 5,000 OR THE FEES PAID BY YOU TO QFREEMART IN THE PRECEDING THREE MONTHS FOR THE SPECIFIC CLAIM.

9.3 Indemnification

YOU AGREE TO INDEMNIFY, DEFEND, AND HOLD HARMLESS THE QFREEMART PARTIES FROM ANY THIRD-PARTY CLAIMS, DAMAGES (ACTUAL AND/OR CONSEQUENTIAL), ACTIONS, PROCEEDINGS, DEMANDS, LOSSES, LIABILITIES, COSTS, AND EXPENSES (INCLUDING REASONABLE LEGAL FEES) THAT WE MAY SUFFER OR INCUR AS A RESULT OF, OR IN CONNECTION WITH: (I) YOUR CONTENT, (II) YOUR UNAUTHORIZED USE OF THE SERVICES, OR PRODUCTS OR SERVICES INCLUDED OR ADVERTISED IN THE SERVICES; (III) YOUR ACCESS TO AND USE OF THE SERVICES; (IV) YOUR VIOLATION OF ANY RIGHTS OF ANOTHER PARTY; OR (V) YOUR BREACH OF THESE TERMS, INCLUDING, BUT NOT LIMITED TO, ANY INFRINGEMENT BY YOU OF THE COPYRIGHT OR INTELLECTUAL PROPERTY RIGHTS OF ANY THIRD PARTY. WE RESERVE THE EXCLUSIVE RIGHT TO SETTLE, COMPROMISE, AND PAY ANY AND ALL CLAIMS OR CAUSES OF ACTION BROUGHT AGAINST US WITHOUT YOUR PRIOR CONSENT. WE ALSO RESERVE THE RIGHT, AT YOUR EXPENSE, TO ASSUME THE EXCLUSIVE DEFENSE AND CONTROL OF ANY MATTER FOR WHICH YOU ARE REQUIRED TO INDEMNIFY US, AND YOU AGREE TO COOPERATE WITH OUR DEFENSE OF THESE CLAIMS. YOU AGREE NOT TO SETTLE ANY MATTER IN WHICH WE ARE NAMED AS A DEFENDANT AND/OR FOR WHICH YOU HAVE INDEMNITY OBLIGATIONS WITHOUT OUR PRIOR WRITTEN CONSENT. WE WILL MAKE REASONABLE EFFORTS TO NOTIFY YOU OF ANY SUCH CLAIM, ACTION, OR PROCEEDING UPON BECOMING AWARE OF IT.

YOU AGREE TO INDEMNIFY QFREEMART AGAINST CLAIMS ARISING FROM YOUR BREACH OF THESE TERMS OR VIOLATION OF LAW.

10 Termination

10.1 Monitoring and Enforcement

We reserve the right to:

- Refuse to post or remove any User Contributions at our sole discretion, for any reason or no reason.
- Take any necessary or appropriate action with respect to any User Contribution, including but not limited to, if we believe that it violates the Terms of Use, Content Standards, infringes on any intellectual property or other rights of any person or entity, poses a threat to the safety of users or the public, or could create liability for the Company.
- Disclose your identity or other information to any third party who claims that your posted material violates their rights, including intellectual property or privacy rights.
- Take legal action, including referral to law enforcement, for any unauthorized or illegal use of the Website.
- Suspend or terminate your access to all or part of the Website, for any reason or no reason, including but not limited to, any violation of these Terms of Use.

Both you and QFREEMART may terminate this Contract at any time. The following shall survive termination:

1. Our rights to use and disclose any information you provided on or through the platform, any content you uploaded and any feedback you submitted;
2. Users's rights to further re-share content and information you shared through the Services;
3. Sections 1 (General Terms) , Sections 4 (Usage) , Section 5 (Content) , Section 6 (Interactions) , Section 7 (Transactions) , Sections 9 (Disclaimers, Indemnification and Exclusions of Warranties) , 11 (Governing Law and Dispute Resolution) ;

Upon termination of the Terms of Service, you will no longer have a right to access your account or your Content. We will not have any obligation to assist you in migrating your data or your Content and we may not keep any back up of any of your Content. We undertake no responsibility for deleting your Content under these Terms of Service. Note that, even if your Content is deleted from our active servers, it may remain in our archives (but we have no obligation to archive or back-up your Content), and subject to the licenses set forth in these Terms of Service.

10.2 How do you delete your account

If you wish to delete your QFREEMART account then you may do so in by sending us an email with your request at contactus@qfreemart.in We might ask for additional confirmations on your part prior proceeding with the account deletion.

Once your account has been deleted you won't have access to your former QFREEMART account or its Content, and any subscriptions will be deleted and cannot be subsequently renewed. There is no technical facility on QFREEMART for you to be able to access your Content or other data set following termination of your account. You will receive an email confirmation upon the successful deletion of your account.

Any such termination will be without prejudice to our rights, remedies, claims, or defenses hereunder or any of our partners, successors, contractors, suppliers or any third party we associate with.

10.3 Account termination

We may terminate or suspend your account or access to all or part of the Platform for any or no reason, including but not limited to :

- If for any reason the QFREEMART decides to discontinue to provide the Services in general or specifically to you
- If the user fails to comply with any applicable legal provisions
- Upon instruction of the appropriate law enforcement agency or regulatory body
- If the user fails to respect the rights of others, such as but not restricted to trademarks, intellectual property rights, confidentiality or privacy, whether or not there is any repeat infringement.
- If the user breaches a contractual obligation, including but not limited to this Terms
- If the user is suspected of fraud, violation of credit card association standards
- If we suspect that the user has been denied access to other online platforms
- If the reputation of the services offered on the QFREEMART is substantially impaired by the online presence of the user (if, for example, it is discovered after registration that the user has been convicted of a criminal offence, and if said conviction is known to other users)
- If the user promotes any communities or associations, or any of their methods or activities, which are under surveillance by authorities responsible for public safety
- If the user causes harm to any other user(s)

Any such termination will be without prejudice to our rights, remedies, claims, or defenses hereunder or any of our partners, successors, contractors, suppliers or any third party we associate with.

11. Miscellaneous

11.1 Governing Law - These Terms and Conditions, including any non-contractual rights or obligations arising out of or in connection with them, shall be governed by and construed in accordance with the laws of the India.

11.2 Dispute Resolution - If you have any issues with the Software or our services, please contact us, and we will endeavor to resolve your issue as soon as possible. Disputes must first be raised via in-app support. Any disputes or claims arising out of or in connection with these Terms and Conditions, including any non-contractual rights or obligations, shall be referred to arbitration under the Arbitration & Conciliation Act, 1996, seated in Kolhapur, India.

11.3 Communication - You agree that all agreements, notices, disclosures, and other communications that we provide to you electronically satisfy any legal requirement that such communications be in writing.

11.4 Assignment - Assigning or sub-contracting any of your rights or obligations under these Terms and Conditions to any third party is prohibited unless agreed upon in writing. We reserve the right to transfer, assign, or sub-contract the benefit of the whole or part of any rights or obligations under these Terms and Conditions to any third party.

11.5 Counterparts. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

11.6 Construction. Headings used in this Agreement are for convenience only and shall not be used in the interpretation of this Agreement. As used herein, the singular includes the plural, and the masculine, feminine, and neuter gender each includes the others where the context so indicates.

11.7 Entire Agreement - These Terms and Conditions represent the entire agreement between us, overriding any prior written or verbal agreements that may have been made.

11.8 Relationship between the Parties - These Terms and Conditions do not create an agency, partnership, joint venture, employment, or franchise relationship between you and us.

11.9 Waiver - In the event that any party to these Terms and Conditions fails to exercise any right or remedy contained herein, this shall not be construed as a waiver of that right or remedy.

11.10 Force Majeure - Neither party will be liable for any loss or damage or for any delay or failure in performance due to acts beyond the control of such party, whether or not such acts could reasonably be anticipated (including acts of God, legislative, judicial, or regulatory acts of any provincial or the federal government, court or regulatory authority, acts of any of our subcontractors or any third-party providers of goods or services to us, labor disruptions, blackouts, embargoes, or a pandemic, epidemic, or disease impacting the Party claiming to have been impacted by the relevant force majeure event).

11.11 Survival - All provisions that either expressly or by their nature survive will survive suspension or termination of your Account.

11.12 Third-Party Rights - A person who is not a party to these Terms and Conditions has no right to enforce any of its terms.

11.13 Languages - These Terms and Conditions may be available in languages other than English. To the extent of any inconsistencies or conflicts between these English Terms and Conditions and any terms and conditions available in another language, the most current English version of the Terms and Conditions will prevail. Any disputes arising out of these Terms and Conditions will be resolved in English unless otherwise determined by us (acting in our sole discretion) or as required by applicable law.

11.14 No Other Limitations - Nothing herein shall be construed to limit or prevent either party's abilities to conduct their respective business with respect to matters not specifically addressed under these Terms.

11.15 Ordering, Acceptance, Rejection & Cancellations - A Buyer places a request detailing items/services desired. The request becomes an Order only upon Vendor acceptance.

Pre-Acceptance: Buyers may cancel any request (or item) before Vendor acceptance without penalty. Vendors may reject an order in full or reject sub-orders (individual items) before acceptance without penalty.

Post-Acceptance: Once a Vendor accepts an order (or item), the Vendor is obliged to fulfil it. Any cancellation by the Vendor after acceptance shall be treated as Vendor Cancellation. If a Buyer cancels after Vendor acceptance, such cancellation shall count towards the Vendor's Order Cancellation Rate.

Partial Acceptance: Vendors may accept part of an order; only accepted items become binding.

Substitution: Any substitution must be mutually approved by the Buyer & Vendor in-app or via email with contactus@qfreemart.in in CC.

11.16 Queue & Appointment System

QFREEMART provides a virtual queue and appointment management system

The Platform may display indicative queue positions and expected wait times based on Vendor inputs and system estimates.

Queue position is indicative only and may change due to operational priorities, emergencies, or prior appointments.

Vendors may reschedule, delay, or cancel appointments. QFREEMART is not liable for delays, rescheduling, or cancellation by Vendors.

No-show: Buyers who fail to attend an appointment within the grace period may lose their slot, at the Vendor's discretion

11.17 Executors and Delivery Agents

Vendors are solely responsible for the acts and omissions of their chosen Executors and Delivery Agents.

Executor Agents execute services or order-related tasks; Delivery Agents deliver goods/services to the Buyer's location.

Exception: When an Executor provides a home service, they may act as both Executor and Delivery Agent; the Vendor remains responsible.

QFREEMART does not directly employ or control Executors or Delivery Agents listed by Vendors on the Platform

11.18 Delivery Security Codes

To mark an order/service as complete, the in-app Security Code must be exchanged between the completing party and the Buyer.

Orders marked complete without Security Code exchange may be treated as disputed. Failure to follow the Security Code protocol may lead to a decision against the defaulting party in Platform dispute processes

11.19 Vendor Performance Obligations

QFREEMART monitors Vendor performance to preserve trust on the Platform.

Order Delivery Success Rate: Vendors shall maintain at least 95% by both (a) number of orders and (b) aggregate order value. Calculated as:

Successfully Delivered Orders ÷ Orders Accepted × 100.

Order Rejection & Cancellation Rate: Vendors shall maintain a combined rate below 5% by both (a) number of orders and (b) aggregate order value. Rejection = Vendor rejections; Cancellation = pre-acceptance (including Buyer-initiated) as well as post-acceptance cancellations.

Consequences: Failure may lead to reduced visibility, temporary suspension, scrutiny/audits, or delisting.

System of Record: Platform logs are final for metric calculations, subject to error correction by QFREEMART

11.20 Pricing, Negotiation & Taxes

Vendors set prices and applicable taxes and are responsible for issuing tax invoices to Buyers.

Negotiation Feature: Negotiated prices are non-binding until the Vendor & Buyer mutually complete the negotiation process in-app; upon acceptance, the negotiated price becomes binding for that order.

Platform Fees: QFREEMART may charge Vendors platform fees/commissions for successfully completed orders as per the Vendor Agreement or in-app notifications

11.21 Payments & Settlement

Unless expressly stated otherwise, Buyers shall pay Vendors directly using mutually accepted payment methods.

QFREEMART does not operate an escrow or collect monies on behalf of Vendors for standard transactions.

Any optional value-added services (e.g., promotions) billed by QFREEMART to Vendors are payable per issued invoice.

11.22. Refunds, Returns & Disputes

Refunds/returns, where applicable, are governed by the Vendor's policies and applicable law.

Service Quality Disputes: For services executed by Executors, quality-related disputes are between Buyer and Vendor; QFREEMART may facilitate communication but is not a party to the contract.

Delivery Disputes: Where Security Code protocol is followed, the Platform's records will be the primary evidence of delivery completion.

Escalation: Unresolved issues may be escalated via in-app support; QFREEMART may take limited, good-faith decisions to maintain marketplace integrity.

11.23. Ratings & Reviews

Buyers may rate and review Vendors, Executors, and Delivery Agents they have transacted with.

QFREEMART may remove reviews that are fraudulent, abusive, irrelevant, or violate law/policy.

Vendors shall not incentivize or post fake reviews; such behavior may result in penalties or delisting.

11.24 Data & Privacy

Your use of the Platform is subject to the Privacy Policy, which is incorporated by reference.

The Platform processes personal data under applicable laws including the Digital Personal Data Protection Act, 2023 (India) and, where applicable, GDPR.

We share limited data with Vendors, Executors, and Delivery Agents solely to fulfil requests.

We use AI/ML systems for recommendations, fraud detection, queue estimation, and smart matching.

11.25. Suspension, Audit & Termination

QFREEMART may suspend or terminate access for violations of these Terms or law.

Vendors failing to meet performance metrics may be subject to audits, reduced visibility, temporary suspension, or delisting.

QFREEMART may remove listings that are unlawful, misleading, or unsafe

Terms of Sale

1. General information
2. Product listing
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1. General information

This Terms of Sale Policy is an integral part of the “Terms and Conditions” and shall be read and interpreted in conjunction with it.

These Terms of Sale, also referred to as the Purchase Agreement, Services Agreement, or Contract, outline the terms and conditions governing the promotion, supply, and sale of products by registered vendors to you as a buyer through the QFREEMART App and its website (collectively referred to as the “Site” “Platform” “Marketplace”)

QFREEMART operates as a platform facilitating the display and acquisition of diverse goods & services from registered vendors. Such vendors assume full responsibility of promoting, enabling availability, arranging delivery, and conducting financial transactions pertaining to customer orders. QFREEMART, in its role as the platform, assumes limited liability, as it solely serves as a host for users, providing the necessary means for viewing, promoting, and ordering items, thereby establishing connections between customers and vendors. It is the individual responsibility of each user to fulfill their obligations as outlined in these terms and conditions. QFREEMART shall not be held accountable for any user's failure to fulfill their obligations as stipulated by this agreement.

The policy applies to all vendors and buyers who use the Marketplace to sell or purchase products and/ or services. The purpose of this policy is to ensure a fair and transparent marketplace that protects the interests of all parties involved.

The terms and conditions that govern the sale of products on the Marketplace include the obligations of vendors and buyers, order acceptance procedures, shipping guidelines, deals, promotions, and discounts, intellectual property rights, limitations of liability, termination and modification procedures, and governing law and jurisdiction.

Please read these terms carefully before you submit your order via the Platform. By placing an order on the Platform, you are agreeing to be bound by these Terms of Sale with immediate effect.

Definitions

"Marketplace" refers to the online multi-vendor marketplace operated by the Operator.

"Operator" refers to the operator of the Marketplace.

"Vendor" refers to a seller who offers products for sale on the Marketplace.

"Buyer" refers to a purchaser who buys products on the Marketplace.

"Product" also called as **"Items"** refers to any goods or service offered for sale on the Marketplace.

"Order" refers to a request placed by a registered customer for the purchase of items from a vendor through the App.

"Order Acceptance" refers to the procedures for accepting or rejecting an order on the Marketplace.

"Shipping" refers to the process of delivering a product to a buyer.

"Deals, Promotions, and Discounts" refer to any special offers or discounts offered on the Marketplace.

"Intellectual Property Rights" refer to any patents, trademarks, copyrights, or other proprietary rights associated with a product or service.

"Liability" refers to any legal responsibility for damages or losses resulting from the use of the Marketplace.

2. Product listing

Product listing refers to the process of creating a detailed description of a product that is being offered for sale on a marketplace or e-commerce platform. This description typically includes information such as the product's name, description, images, pricing, and shipping details. The product listing is an important aspect of the sales process, as it provides potential buyers with the information they need to make an informed purchasing decision.

The vendors are required to fulfill the following obligations in relation to the listing of products on the QFREEMART marketplace:

- a. All information related to products, including but not limited to images, descriptions, certificates, warranties, price, availability, and conditions for delivery, must comply with the provisions of the Terms of Use policy, specifically those governing content. This requirement is intended to ensure that all product information provided on the QFREEMART marketplace is accurate, complete, and in compliance with applicable laws and regulations, and to promote transparency, fairness, and trust in the marketplace for the benefit of both buyers and sellers.
- b. It is imperative that any Product offered for purchase has obtained prior legal approval and licensing for sale from all pertinent authorities within the jurisdiction of the India.
- c. The vendor shall not act as an intermediary or agent of a third party and shall only list products that are in their own inventory and for which they can provide legal proof of their ability to sell.
- d. The product listings must include specifications, descriptions, or limitations of product usage that comply with the relevant laws of the India.
- e. It is the responsibility of vendors to ensure that product information is updated regularly. In the rare event that the information provided deviates from the details printed on the product packaging, the information on the packaging will take precedence. As recipes may change at any time, it is recommended that customers regularly consult the ingredients list and allergy-related information on the packaging to ensure that they have the most up-to-date information.
- f. Vendors must also ensure that the products they list on the QFREEMART marketplace are of high quality and meet the standards set by the relevant authorities. This includes ensuring that the products are safe for use, free from defects, and meet any applicable quality standards or certifications.
- g. Vendors must provide accurate and up-to-date information about the availability of their products, including any limitations or restrictions on delivery. This information must be clearly stated in the product listing to avoid any confusion or misunderstandings with buyers.
- h. Vendors must also comply with any applicable pricing regulations and ensure that the prices listed for their products are fair and reasonable. Any discounts or promotions offered must be clearly stated and comply with the relevant laws and regulations.
- i. Vendors must be responsive to any inquiries or concerns raised by buyers regarding their products. This includes promptly addressing any issues with the product quality, delivery, or pricing, and providing appropriate solutions or remedies as needed.

The vendor guarantees that in the event of ceasing business operations, closing operations for a significant period, or being unable to offer listed products to customers, it will promptly notify QFREEMART. In the event that the vendor fails to do so, whether due to omission or fault, QFREEMART will not be held liable for any resulting liabilities, whether financial or otherwise.

3. Searches and rankings

QFREEMART reserves the right to determine the algorithms and parameters used to rank vendors (vendors and/or stores) and products displayed on the platform, and to modify and update them as necessary. The user acknowledges and agrees that the ranking may be influenced by various factors and metrics, such as store proximity, accessibility, previous reviews, and any agreements QFREEMART has made with vendors or product distributors regarding their positioning and visibility.

QFREEMART's right to determine the ranking of vendors and products on the platform is intended to promote fairness and transparency in the marketplace, and to ensure that buyers are able to easily find the products they are looking for. However, QFREEMART cannot guarantee that all products will be easily discoverable or that all vendors will receive the same level of visibility or sales.

To limit its liability towards customers, QFREEMART provides various search and filtering options to help users find the products they are looking for. Additionally, QFREEMART encourages vendors to provide accurate and detailed product information, including images, descriptions, and specifications, to help buyers make informed purchasing decisions.

To limit its liability towards vendors, QFREEMART provides clear guidelines and policies regarding product listings and vendor behavior on the platform. Vendors are encouraged to comply with these guidelines and to provide high-quality products and services to their customers. QFREEMART also provides various tools and resources to help vendors optimize their listings and improve their visibility on the platform.

Ultimately, QFREEMART cannot be held liable for any loss in revenue or other damages suffered by vendors or customers as a result of the ranking algorithms or other factors that may affect product visibility or sales. However, QFREEMART is committed to working with both vendors and customers to address any issues or concerns that may arise, and to promote a fair and transparent marketplace for all parties involved.

4. Placing and accepting an order

QFREEMART is committed to providing a seamless and efficient ordering process for users, while also ensuring that vendors are able to fulfill orders in a timely and effective manner. By working together, QFREEMART, users, and vendors can create a positive and successful marketplace experience for all parties involved.

It is important for users to ensure that all information provided when placing an order is accurate and up-to-date. This includes information such as the delivery address, payment details, and any special instructions or requests. Failure to provide accurate information may result in delays or other issues with the order.

When a user places an order through the QFREEMART platform, they are confirming the accuracy of all the information they provide. The platform will confirm the order to the user within the service interface. By placing an order, it is important to note that no contractual relationship exists between the user and QFREEMART. QFREEMART reserves the right to refuse to accept an order for any reason and to decline to fulfill it.

The acceptance of your order shall be contingent upon our confirmation of the receipt of the platform charges, and we shall communicate such acceptance to you in writing, including but not limited to app messages, email, or mobile messaging by the vendor.

Subject to the completion of the platform charges, the order shall be transferred to the pertinent vendor, who shall assume responsibility for its fulfillment. The vendor will be notified of the order and will have the opportunity to accept or decline it. If the vendor accepts the order, they will be responsible for processing and delivering the order to the user in a timely and efficient manner.

5. Price

By using our Service, you confirm that you are utilizing it for personal, non-commercial purposes. Please note that on QFREEMART dynamic pricing may be implemented at times, which may result in changes to the prices of Items and delivery while you are browsing.

Vendors are authorized to establish prices and modify them at their discretion, provided that such changes are made before order placement. Please note that any changes made to prices will not impact orders that are already placed. In the event of an obvious pricing error, we will notify you as soon as possible, and you will have the option to either confirm the order at the original price or cancel the order without incurring any charges and receive a full refund from vendor for payments made if any to vendor.

The prices displayed on the platform will be quoted in the local currency (INR for India) and VAT inclusive.

Please note that for goods that are charged by weight, such as fruit, meat, and cheese, the basic price per unit will apply. The actual quantity of such goods delivered may differ from the quantity originally ordered, and the price charged will be adjusted accordingly.

For pre-packed and price-labelled fresh products, the applicable price is the one in force at the time the order is prepared. Please be advised that QFREEMART reserves the right to change prices and update them at any time.

Please note that Vendors and/or their delivery partners may charge a delivery fee when making a delivery. You will be notified of any such fees during the order process before completing your order. The complete cost of your order, including the prices of Items, Delivery, applicable Service Fees, and taxes, will be displayed on the checkout page of our Application including variable charges if any as per mentioned conditions.

In the event that the vendor engages a third-party courier for the delivery of products, the courier is not authorized to impose additional or separate delivery charges on the customer beyond those reflected on the checkout page including variable charges if any as per mentioned conditions. The vendor is responsible for ensuring that appropriate measures are in place to prevent any unauthorized extra charges.

From time to time, there may be errors or omissions related to the pricing or description of advertised products. Vendors shall make reasonable efforts to correct any such errors or omissions as soon as possible after becoming aware of them. We reserve the right to change, modify, substitute, suspend, or remove any information related to items for sale without prior notice.

If you have already purchased a product and the Vendor has made an error or omission, Vendor shall take the following actions: (i) if the actual price of the product is lower than the stated price at the time of purchase, Vendor shall charge you the lower price; or (ii) if the actual price of the product is higher than the stated price, Vendor shall contact you and give you the option to pay the correct (higher) price or cancel your order and receive a refund;

6. Variety limitation

The selection and pricing of groceries may vary depending on the delivery location. This is due to a variety of factors, such as differences in local availability, transportation costs, and taxes or fees that may be imposed by local authorities. To ensure that users are aware of any potential differences in selection or pricing based on their delivery location, QFREEMART provides clear and transparent information about these factors. Users can view the available selection and pricing for their specific location before placing an order, allowing them to make informed purchasing decisions.

QFREEMART works closely with vendors and suppliers to ensure that the selection and pricing of items are fair and reasonable, while also taking into account any local market conditions or regulatory requirements. By providing a diverse and affordable

selection of items to users across different locations, QFREEMART is committed to promoting accessibility and convenience in the marketplace.

7. Volume limitation:

By working together to confirm orders and manage delivery quantities, vendors and users can help ensure that the QFREEMART marketplace remains a reliable and efficient platform for purchasing items.

In certain cases, the vendor may need to contact the user to confirm an order before it can be processed. This may occur if the total number of items in the order exceeds 100, or if more than 5 items of the same product are ordered. Additionally, if the order requires more than one delivery personnel to handle due to volume limitations, the vendor may need to confirm the order with the user.

It is important to note that the vendor reserves the right to limit the delivery quantity for particular products or, if necessary, not to deliver a particular product at all based on availability. This is to ensure that all orders can be fulfilled in a timely and efficient manner, while also maintaining the quality and integrity of the products being delivered.

If the vendor needs to contact the user to confirm an order, they will do so as soon as possible to minimize any potential delays or issues with the order. The user should be prepared to provide any necessary information or clarification to ensure that the order can be processed and delivered as smoothly as possible.

The vendor can reserve the right to decline any orders, at their sole discretion, if they detect bulk purchasing or the purchase of multiple units of similar products.

8. Other limitations

Delivery Delays:

If the vendor's supply of the product is delayed due to circumstances beyond their control, they will promptly notify you and take necessary measures to minimize the impact of the delay without incurring any liability.

If no one is available at your address to receive the delivery and the products cannot be handed over, the vendor will provide you with instructions on how to reschedule delivery or arrange for product collection.

If you fail to collect the product from the vendor as agreed or if, following a failed delivery attempt, you do not make arrangements for delivery or collection from a delivery depot, the vendor will contact you for further instructions. If, despite their reasonable efforts, they are unable to contact you or make arrangements for delivery or collection, they reserve the right to cancel your order.

9. Amending and/ or canceling an order

Once an order has been placed, the user may not be able to make any amendments to it due to the technical features provided by the service. However, the user may be able to cancel a placed order before it is accepted by vendor. In the event of the cancellation of a placed order, no refund shall be issued with respect to the platform charges.

It is important for users to carefully review their orders before confirming them to ensure that all information is accurate and up-to-date. If any changes or cancellations need to be made, the user should contact the vendor or QFREEMART customer service as soon as possible to determine if it is possible to do so.

10 Incomplete fulfilment

QFREEMART facilitates the delivery of all products ordered in the correct quantity and to a high standard of quality. However, users acknowledge that products are subject to stock availability and human errors. Therefore, vendors reserves the right to amend orders, in whole or in part, at any time and without liability or compensation, to remove any item that is out of stock, damaged, spoiled, or unavailable for any other reason, in order to successfully complete the order.

Vendors should endeavor to maintain the replaced item's price the same as the brand ordered, but in some cases, the price may increase if a higher valued replacement is necessary. Every effort is made by vendor to ensure that all items shown on the platform are available to order.

If an item is not delivered, despite being billed, the amount in question will be credited back to the user at a reasonable time after the vendor becomes aware of the issue. No subsequent delivery is mandatory to be made, and the customer is not entitled to claim any further compensation. If, for any reason beyond vendor's reasonable control, it is unable to supply a particular item, vendor shall not be liable to the user.

Please note that the vendor, through QFREEMART, will attempt to send push notifications in the event that selected products are unavailable. Although every effort is made to cater to orders, products can only be fulfilled at the discretion of the Vendor. QFREEMART shall not assume any liability for incomplete fulfillments, nor shall it provide any refunds for any associated platform charges related to the order.

11. Incorrect fulfilment

As a consumer, you have a legal entitlement to receive products that conform to their description, are of satisfactory quality, and meet any specific requirements that you have communicated to the vendor (and the vendor has agreed to) prior to placing your order. If you believe that the products you have received do not meet these legal standards, please inform us immediately. We may request photographic evidence of the issue if it is something that can be visually inspected and forward the matter to the vendor.

Please note that QFREEMART does not have the authority to enforce agreements between users and vendors. Our role is to mediate the situation and support both parties in reaching an amicable solution.

We will keep a record of such situations and use them to inform our disciplinary decisions regarding any abusive behavior exhibited by any of our users.

QFREEMART shall not assume any liability for incorrect fulfillments, nor shall it provide any refunds for any associated platform charges related to the order.

12. Payments for Orders

QFREEMART operates as an intermediary platform that connects customers with vendors. As such, we do not process or receive any payments related to a sale. The financial transaction is solely between the customer and the vendor, and it is conducted through mutually agreed-upon means.

QFREEMART shall levy a platform charge, which shall be applicable to each order placement, and the payment of such charge shall be the sole responsibility of the customer. The platform charge is intended to cover the costs associated with the use of the platform, including but not limited to the processing of orders, the provision of customer support, and the maintenance of the platform's infrastructure. It is important to note that the platform charge is a necessary component of the platform's operation, and failure to pay such charge may result in the cancellation of the order or the suspension of the customer's account.

Upon the placement of an order by a customer and the completion of the platform charges, the vendor will receive the order details and the payment option provided by the customer. The vendor will then process the payment upon delivering the products and fulfilling the order. Any issues related to the payment or the order fulfilment should be addressed directly with the vendor.

Payment for all Items and deliveries can be made by cash, credit or debit card, or other payment method made available by the vendor and highlighted accordingly on the Platform and are due immediately.

Please note that if cash on delivery (COD) is an available payment option, it will be clearly indicated on the Platform before you place your order. Under COD conditions, only cash payments will be accepted upon delivery. Please be advised that couriers will only carry a limited amount of change, and as such, we kindly request that you prepare the exact payment or as close to it as possible for the order to avoid any issues with change.

Please be advised that not all vendors will be able at all times to accept payment by any and all means neither do they have any obligation to accommodate such payment methods.

Regarding digital transactions, you acknowledge that errors related to such transactions may result in a reversal of the transaction, fees, claims, penalties, or chargebacks from the financial institution or payment services provider that issued the payment card. You acknowledge that the financial institution or payment services provider that issues or supports the designated payment method linked to the account determines any amount reversed, returned, or charged back. The vendor is obligated to follow the instructions of that financial institution or payment services provider.

You agree that you will be responsible for resolving any disputes with the financial institution that issued your card or manages your account. You acknowledge that the vendor is not obligated to recall funds and will not be held liable if it is unable to partially or fully recall the funds subject to the dispute. Please note that you may not be eligible to receive a refund if you failed to keep the security details relating to your card safe or if you are a victim of financial fraud, even if the transaction was done by third parties without your knowledge or permission.

The customer agrees to indemnify and hold harmless QFREEMART from any and all claims, damages, liabilities, costs, and expenses, arising from or related to the customer's use of the QFREEMART platform and any disputes related to the vendor's ability to accept payments. The customer acknowledges that not all vendors may be able to accept payment by all means at all times and that the vendor has no obligation to accommodate such payment methods.

13. Receipt

As per our policy, the vendor is responsible for providing the user with a receipt upon delivery of the order. The receipt should include all relevant details, such as the itemized list of products purchased, the total cost of the order, any applicable taxes, and the payment method used.

The receipt serves as proof of purchase and is essential for any future inquiries or disputes related to the order. It is the responsibility of the vendor to ensure that the receipt is accurate and complete.

In the event that the user does not receive a receipt upon delivery, they should contact the vendor immediately to request one. If the vendor fails to provide a receipt or if the receipt is inaccurate or incomplete, the user may contact QFREEMART's customer support team for assistance in resolving the issue.

14. Taxes

Regardless of any other provisions stated herein, the vendor is solely responsible for all taxes, payments, fees, and any other liabilities associated with the computation, payment, and collection of taxes related to customer orders.

The vendor shall assume full responsibility for verifying the amounts collected, filing the necessary tax returns, and remitting the correct amount to the relevant tax authorities. Taxes shall encompass all applicable taxes due in connection with the sale of items, including delivery services (if applicable).

It is clarified that QFREEMART will not be liable for payment of any Taxes that the vendor is liable to pay in connection with the sale of items through the platform and hereby undertakes to indemnify, defend and hold harmless, QFREEMART and each of its affiliates and (as applicable) all of their directors, officers employees, representatives and advisors against any tax liability that may arise against QFREEMART on account of the non-payment of Taxes by the vendor under these Terms..

15. Delivery of products

The vendor is responsible for making all necessary arrangements for the delivery of products to customers, whether through their own employees or third-party delivery services.

The vendor must ensure that all products are delivered in a timely and efficient manner, and that they arrive in good condition. The vendor is responsible for packaging the products appropriately to prevent damage during transit.

If the vendor engages a third-party delivery service, they must ensure that the service provider is reliable and reputable. The vendor must also ensure that the delivery service provider is adequately insured to cover any damages or losses that may occur during transit.

The vendor must provide customers with accurate and up-to-date information regarding the delivery of their products.

In the event of any issues or delays with the delivery of products, the vendor must promptly notify the customer and take appropriate measures to resolve the issue. If the vendor chooses to engage a third-party delivery service for the delivery of products, they remain responsible for completing the order and ensuring that all items are delivered in good condition. In the event of missing or damaged products, the vendor cannot blame the courier for such issues. The vendor must take appropriate measures to resolve the issue and ensure that the customer receives the missing or damaged items as soon as possible. The vendor must also ensure that the third-party delivery service provider is adequately insured to cover any damages or losses that may occur during transit. If the vendor fails to take appropriate measures to resolve the issue, QFREEMART reserves the right to suspend or terminate the vendor's account.

The vendor is responsible for any costs associated with the delivery of products, including shipping fees and any applicable taxes or duties.

Vendors may choose to limit the areas and timings in which they deliver products. Customers should check the vendor's general conditions & item specific conditions covering conditions related to service, delivery & refund before placing an order to ensure that the vendor delivers to their area and at a time that is convenient for them. Please note that if the vendor is unable to deliver to the area from which the order was initiated, the customer cannot hold the vendor accountable for any inconvenience or losses incurred.

It is the responsibility of the customer to ensure that the delivery address provided is accurate and complete. If the delivery address is incorrect or incomplete, the vendor may not be able to deliver the products, and the customer may be charged for any additional delivery attempts. Vendors reserve the right to conduct any necessary inquiries to verify your identity and/or ownership of your financial instruments. This may include requesting additional information or documentation, such as a form of identification and/or credit card. The courier must take all necessary measures to protect the privacy of the customer and not disclose any private or confidential information. If the courier needs to authenticate the customer's identity and ownership of financial instruments and gains access to such information, they must ensure that it is kept confidential and not disclosed to any unauthorized parties.

At its sole discretion, the vendor may refuse delivery and cancel the order if it is unable to verify or authenticate any information provided by the customer.

If the vendor is unable to deliver the products due to circumstances beyond their control, such as extreme weather conditions or unforeseen events, the vendor will notify the customer as soon as possible and take appropriate measures to resolve the issue.

QFREEMART reserves the right to suspend or terminate the vendor's account if they fail to comply with this vendor's general conditions & item specific conditions covering conditions related to service, delivery & refund.

16. Special Deliveries

Special Deliveries encompass those consignments necessitating parameters exceeding the customary scope and incorporating supplementary or distinct stipulations not encompassed within the conventional delivery procedure / conditions.

Such parameters may encompass particular delivery schedules, locales, or conditions not customarily mandated for ordinary deliveries. The delivery might necessitate supplementary resources, apparatus, or personnel to satisfy the distinct stipulations. In these instances, the delivery procedure / conditions may warrant customization or adaptation to accommodate the client's or situation's singular demands.

The supplier reserves the right to impose supplementary and fluctuating delivery fees, calculated with reference to the parameter or aggregation of parameters deviating from the standard delivery procedure.

The expenses correlated with special deliveries may be influenced by factors beyond the supplier's control, including but not limited to traffic conditions, availability of auxiliary transportation facilities, overtime, and other considerations. The supplier shall endeavor to furnish a reference to the costs associated with the special delivery, and the client shall recognize that the ultimate delivery cost shall be ascertained and applied upon the delivery's conclusion.

References to pertinent fees per additional kilometer, volume, weight, overtime, or any other special circumstances shall be made accessible to the client upon order placement.

In the event of special deliveries, the supplier shall issue a supplementary receipt in addition to the order-related receipt, reflecting any additional charges applicable to the special delivery.

17. Failed deliveries

As vendors may engage third-party delivery companies and incur costs for each delivery, failed deliveries are subject to the vendor's interpretation. In the event of a failed delivery caused by the customer, the customer may still be liable for charges for the item and/or delivery.

Reasons that may cause a delivery to fail include, but are not limited to, the following:

- Failure to answer the door
- Failure to answer the phone when the driver contacts the customer using the contact information provided
- Answering the phone but failing to provide access within a reasonable amount of time, and the driver is unable to find a safe location to leave the products.
- Please note that the vendor reserves the right to determine whether a delivery has failed due to the customer's actions or inactions.

In the event of any disputes arising from failed deliveries, matters shall be deferred to public or judicial authorities for resolution. The vendor shall cooperate fully with any investigations or proceedings related to such disputes.

Please note that the vendor reserves the right to take legal action against any customer who engages in fraudulent or illegal activities related to failed deliveries, including but not limited to providing false information or attempting to evade payment for the item and/or delivery.

18. Title to Products

Upon delivery of the product to the designated delivery address and receipt of payment, ownership and responsibility of the product shall be transferred to the customer.

10. Refunds, Returns, Replacements and Exchanges

Please refer to our Refund Policy for information regarding refunds.

20 Warranties, Representations and Undertakings

We provide our services to you on an "as is" basis, without any representations, warranties, or conditions of any kind. We disclaim all warranties, conditions, and representations, whether express, implied, or collateral, including but not limited to, warranties of merchantability, fitness for a particular or general purpose, non-infringement, compatibility, and security. We do not guarantee that our services will be error-free, uninterrupted, or provided in a timely or proper manner.

You warrant, represent, and undertake that:

(a) You shall fully comply and will at all times continue to fully comply with all applicable laws, statutes, and regulations, including but not limited to, all privacy laws and content regulation.

(b) You have full power and authority to enter into these Terms of Sale and make payment in accordance with these Terms of Sale.

(c) If you purchase a product on behalf of a business entity, you represent that you are authorized to act on behalf of such business and bind the business to these Terms of Sale.

21. Limitation of Liability

For the purposes of this clause, "Liability" refers to liability in or for breach of contract, negligence, misrepresentation, tortious claim, restitution, or any other cause of action whatsoever relating to or arising under or in connection with this Agreement, including liability expressly provided for under this Agreement or arising by reason of the invalidity or unenforceability of any term of this Agreement. QFREEMART does not exclude or limit Liability for any Liability that cannot be excluded by law.

Subject to the preceding sentence, QFREEMART shall not be liable for loss of actual or anticipated profits, loss of goodwill, loss of business, loss of revenue or use of money, loss of contracts, loss of anticipated savings, loss of data and/or undertaking the restoration of data, fraudulent orders, any special, indirect, or consequential loss, whether foreseeable, known, foreseen, or otherwise. This liability exclusion applies whether such damage or loss is direct, indirect, consequential, or otherwise.

These Terms of Sale shall not limit or exclude a party's liability for:

- (a) Fraud, including fraudulent misrepresentation, perpetrated by that party;
- (b) Death or personal injury caused by the negligence of that party; or
- (c) Any other liability that cannot be limited or excluded under applicable law.

Subject to clause 19, we, our parent company, subsidiaries and affiliates, and our and their directors, officers, agents, employees, suppliers, subcontractors, or licensors shall not be liable, whether based on an action or claim in contract, tort, negligence, breach of statutory duty, or otherwise arising out of or in relation to these Terms of Sale, for loss of profits, loss of data or information, business interruption, or other pecuniary loss, or for any special, indirect, incidental, or consequential damages, even if we, our affiliates, directors, officers, agents, employees, licensors, subcontractors, or suppliers have been advised of the possibility of such damages.

Furthermore, to the extent permitted by applicable law, we (including our parent company, subsidiaries and affiliates, and our and their directors, officers, agents, employees, suppliers, subcontractors, or licensors) shall not be liable, and you agree not to hold us responsible, for any damages or losses resulting directly or indirectly from:

- (a) Supplying the items late or not supplying any part of them if this is caused by your failure to provide us with the necessary information within a reasonable time of our request or to make payment as required;
- (b) Damages that may result from the unauthorized repair of the product;
- (c) Loss of any saved/stored data in products that are either repaired or replaced;
- (d) Your reliance on the content or other information provided on the platform with respect to the product you order;
- (e) Your use of or inability to use the ordered product;
- (f) Delays or disruptions to our platform or our services;
- (g) Viruses or other malicious software obtained from the use of the ordered product;
- (h) Damage to your hardware device from the use of your ordered product; or
- (i) Your loss of or inability to do business or similar as a result of our inability to deliver the product to you.

By agreeing to these Terms of Sale, you acknowledge and accept that you will indemnify and hold us, our parent company, subsidiaries and affiliates, and our and their directors, officers, agents, employees, suppliers, subcontractors, or licensors harmless from and against any losses, damages, and expenses (including legal fees and attorney's fees) arising out of or relating to:

- (a) Any claims or demands made by any third party due to or arising out of your use of the platform and our services;
- (b) Your violation of any provisions of these Terms of Sale, including, without limitation, any of the warranties, representations, and undertakings; or
- (c) Your violation of any applicable laws.

Although QFREEMART will use its best endeavors to ensure that unintentional operational errors do not occur, QFREEMART cannot provide any warranty or guarantee in this regard. Notwithstanding anything to the contrary herein set out, QFREEMART's aggregate liability under this Agreement shall not exceed the receivables to QFREEMART from the total value of the Order under which the claim arose.

22. Miscellaneous

22.1 Governing Law.

The laws of the India shall govern and interpret these Terms of Sale, as well as any non-contractual rights or obligations arising from or related to them.

22.2 Relationship of the Parties

The parties and any third party shall not interpret anything in these Terms of Sale as creating a partnership or joint venture relationship between the parties. It is understood that the parties will always remain independent and will contract for services as such.

22.3 Assignment

These Terms of Sale shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. You acknowledge and agree that you shall not assign or transfer these Terms of Sale or any of your rights or obligations under these Terms of Sale, whether directly or indirectly, without obtaining our prior written consent. Such consent shall not be unreasonably withheld.

22.4 Entire Agreement

These Terms of Sale, along with the documents referred to or incorporated herein by reference, constitute the entire agreement between the parties regarding the subject matter and supersede all prior agreements, negotiations, and representations, whether written or oral, relating to such subject matter. Except as provided in these Terms of Sale and the documents referred to or incorporated into these Terms of Sale by reference, there are no conditions, representations, warranties, undertakings, or agreements between the parties, whether direct, indirect, collateral, express, or implied.

22.5 Severability

If any provision of these Terms of Sale is deemed invalid, illegal, or unenforceable by a court of competent jurisdiction, that provision shall be removed from these Terms of Sale, and the remaining provisions shall remain in full force and effect, provided that the economic or legal substance of the transactions contemplated by these Terms of Sale is not materially affected in any way that is adverse to either party.

22.6 No Waiver

Any waiver by us of any provision of these Terms of Sale shall not be deemed a waiver of any other provision, whether similar or not. Furthermore, any such waiver shall not constitute a continuing waiver of that particular provision, unless expressly provided by us in writing.

In the event that either party fails to assert any of its rights under the Agreement, including but not limited to the right to terminate the Agreement due to a breach or default by the other party, such failure shall not be construed as a waiver by that party of its right to enforce each and every provision of the Agreement in accordance with these Terms at a later time.

22.7 Independent contractors

The execution of the Agreement shall not establish any agency, employment, partnership, joint venture, or any other form of joint relationship. QFREEMART and the vendors are considered independent contractors, and neither party possesses the power to bind the other.

22.8 Survival

All provisions that either expressly state or by their nature survive, shall continue to be in effect even after the suspension or termination of your membership of the Site.

22.9 Force Majeure

Neither party shall be held liable for any loss, damage, delay, or failure in performance resulting from events or circumstances beyond the control of such party, whether or not such events or circumstances could reasonably be anticipated. Such events or circumstances may include, but are not limited to, acts of God, legislative, judicial, or regulatory acts of any provincial or federal government, court or regulatory authority, acts of any of our subcontractors or any third-party providers of goods or services to us, labor disruptions, blackouts, or embargoes.

22.10 Assurances

The parties shall take all necessary actions, execute or arrange for the execution of all required documents, and do anything reasonably within their power to implement and give full effect to these Terms of Sale, including, but not limited to, assisting each other in complying with applicable laws.

22.11 Amendments

You are not permitted to modify, vary, amend, or supplement these Terms of Sale in any manner. We reserve the right to modify, vary, amend, or supplement these Terms of Sale at any time and at our discretion. The current version of these Terms of Sale will be posted on the Site, and any changes will be effective upon posting on the Site or upon the date designated by us as the "effective date" (if any). Your continued use of the Site and our services following any such change constitutes your agreement to be bound by and acceptance of these Terms of Sale as modified.

This document was last updated on 29 August 2025

Refund policy

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1. Introduction

Purpose and scope

This Refund Policy is an integral part of the “Terms and Conditions” and shall be read and interpreted in conjunction with it.

The purpose of this refund policy is to provide clear guidelines and procedures for customers and merchants on the QFREEMART platform regarding refunds for products sold on the platform. The policy aims to ensure that customers are able to receive refunds for eligible products in a fair and timely manner, while also protecting the interests of merchants.

This refund policy applies to all merchants and customers on the QFREEMART platform. It covers all items sold on the platform, including perishable items, fresh fruits, and non-perishable items. The policy outlines the conditions under which refunds are granted, the required documentation for refund requests, and the timeframe for processing and issuing refunds. By using the QFREEMART platform, all merchants and customers agree to comply with this refund policy.

2. Definitions

“ **Perishable Items**” refer to products that have a limited shelf life and are likely to spoil or become unfit for consumption if not stored or handled properly. Examples of perishable items include dairy products, meat, seafood, and fresh produce.

“Non-perishable items” refer to products that have a longer shelf life and are less likely to spoil or become unfit for consumption. Examples of non-perishable items include canned goods, packaged snacks, and household items.

“Fresh fruits” refer to fruits that are not canned, dried, or frozen and are intended for immediate consumption. Examples of fresh fruits include apples, bananas, and oranges.

“Other products” refer to any items sold on the QFREEMART platform that do not fall under the categories of perishable or non-perishable items or fresh fruits.

“Merchant” is an individual or business entity that sells products on the QFREEMART platform.

“Customer” is an individual who purchases products from merchants on the QFREEMART platform.

“Product” also called as **“Items”** refers to any goods or service offered for sale on the Marketplace

“Right to return” means that customers can send back a product they bought from an online store within a certain time period. This is so they can get their money back or exchange the product if it's not what they expected or is faulty. The online store's refund policy will explain the specific conditions for returns. Customers need to show proof of purchase and a valid reason for the return, and the customer will pay for the shipping unless otherwise stated in the refund policy. Consumer protection laws protect the right to return, so customers can feel safe to use it. The right to return is important because it helps customers make good choices and avoid being stuck with products they don't want or can't use.

“Right to replace” an item means that customers can ask for a new product to replace the one they bought from an online store within a certain time period, if the original item is defective or damaged.

“Right to exchange” an item means that customers can ask for a different product to replace the one they bought from an online store within a certain time period. This is so they can get a product that better suits their needs or preferences. The online store's refund policy will explain the specific conditions for exchanges. Customers need to show proof of purchase and a valid reason for the exchange, and the customer will pay for the shipping unless otherwise stated in the refund policy. Consumer protection laws protect the right to exchange an item, so customers can feel safe to use it.

“Right to refuse” means that customers have the legal right to decline or reject a product or service offered by an online store. This is so they can make their own choices and not be forced to buy something they don't want or need. The online store's terms and conditions will explain the specific conditions for refusing a product or service. Customers can refuse a product or service for any reason, as long as it does not violate any laws or regulations. Consumer protection laws protect the right to refuse, so customers can feel safe to use it.

3. General Guidelines

3.1 Order Acceptance

Merchants on the QFREEMART platform are responsible for ensuring that all orders are accurately fulfilled and shipped to customers. Customers have the right to cancel an order before it is accepted, and merchants have the right to cancel an order if the product is out of stock or unavailable.

3.2 Timeframe for Requesting a Refund

Customers must request a refund within a specified timeframe, which may vary depending on the product and the merchant's policies. The timeframe for requesting a refund will be clearly stated on the product page and in the refund conditions stated by vendor.

3.3 Conditions Under Which Refunds are Granted

Refunds will only be granted for eligible products that meet the conditions outlined in the refund policy. These conditions may include damaged, spoiled, or incorrect items, or items that do not meet the product description. Refunds will not be granted for products that have been used or consumed, or for products that have been damaged due to customer negligence.

3.4 Refund Methods

Refunds may be issued in the form of store credit, original payment method, or other methods as determined by the merchant. The refund method will be clearly stated in the refund conditions stated by vendor and on the product page. The refund procedure will depend on the payment method used, and will be issued as follows:

- (a) If payment was made via ApplePay, the refund will be preferably issued to the card added on ApplePay;
- (b) If payment was made by credit/debit card, the refund will be preferably issued to the same credit/debit card used for the payment of the returnable goods on the site.

3.5 Returns

In some cases, customers may be required to return the product in order to receive a refund. The return process will be clearly outlined in the refund policy and may include instructions for packaging and shipping the product back to the merchant. Customers are responsible for the cost of return shipping unless otherwise stated in the refund policy.

3.6 Exchange or Replacement of items

The availability of items ordered is subject to stock availability at the respective stores. To successfully complete an order, the seller reserves the right to amend the order in whole or in part, at any time and without any liability or compensation. The seller also reserves the right to remove any item that is out of stock, damaged, spoiled, or unavailable for any other reason. It is important to note that the seller will communicate any changes to the order to the customer. The customer can contact the seller directly if they have any questions or concerns about the order. The seller will make every effort to ensure that the customer is satisfied with their purchase and will work with the customer to resolve any issues that may arise

Merchant will make every effort to ensure that all items listed on the Site as "available" are in fact available and in stock. However, if any product that a customer orders is out of stock or unavailable for any other reason, including being damaged or spoiled, Merchant may send a push notification to the customer. This will enable the customer to select a replacement item ("Replacements"), which they may choose to accept or reject. It is important to note that the customer will not incur any liability if they reject the Replacements. We will work with the customer to ensure that they are satisfied with their purchase and will make every effort to resolve any issues that may arise

Merchant will make every effort to ensure that the price of the Replacement(s) is the same as the item you originally ordered. However, in the event that the price of the Replacement(s) is higher or lower than the item originally ordered, you understand that acceptance of such item allows us to make the applicable upward or downward price adjustment. It is important to note that we use our best efforts to ensure that the price of the Replacement(s) is the same as the item you originally ordered. However, in some cases, the price of the Replacement(s) may be different from the item originally ordered. In such cases, Merchant will make the necessary price adjustments. Merchant will notify you of any price adjustments before processing your order

3.7 Conditions for Exchange or Replacement of Product

1. If a customer received a wrong product or, damaged product or, received a product that is not as described on the Platform, they may request an exchange or replacement of the product
2. The customer must provide proof of purchase and a valid reason for the exchange or replacement request.
3. The vendor will be responsible for the cost of shipping the replacement or exchanged product to the customer.
4. The exchanged or replacement product must be of equal or lesser value than the original product purchased.
5. If the exchanged or replacement product is of lesser value than the original product purchased, the vendor must refund the difference to the customer.
6. If the exchanged or replacement product is of greater value than the original product purchased, the customer must pay the difference to the vendor.
7. The exchanged or replacement product must be in new, unused condition and in its original packaging.
8. The vendor has the right to refuse an exchange or replacement request if the product has been used or damaged by the customer.
9. The online QFREEMART platform is not responsible for any disputes or issues that arise between the customer and the vendor during the exchange or replacement process.
10. This policy is subject to change at any time without prior notice.

3.8 Non-returnable Products

The following products are classified as non-returnable and cannot be returned, replaced, or exchanged:

- Products that are not covered under clause 4.1 of the refund policy;
- Products that are classified as hazardous materials or use flammable liquids or gases;
- Products that have been used or damaged by the customer, or are not in the same condition as when they were received;
- Products with tampered or missing serial numbers;
- Products that fall under specific categories, including but not limited to food, beverages, household goods, digital books, swimwear, hosiery, underwear, socks, health, contact lenses, hygiene-related and personal care products, certain baby products (such as tethers, diapers, hygiene tissues, and feeding-related products), music, video, and video games.

4. Refund or account credit Policy for Different Types of Products

4.1 Classification of items eligible for refunds:

We classify the products into several categories:

1. **Perishable Items:** These are products that have a limited shelf life and are likely to spoil or become unfit for use or consumption within a short period of time. Examples include dairy, meat, seafood, and baked goods.
2. **Fresh Product:** This category includes fresh fruits and vegetables that are harvested and sold in their natural state. These products are generally considered to have a longer shelf life than perishable items, but they can still spoil or deteriorate if not handled properly.
3. **Packaged Foods:** This category includes non-perishable items that are packaged and have a longer shelf life. Examples include canned goods, dry goods, and packaged snacks.
4. **Non-Perishable Items and Other Products:** This category includes items that are not intended for consumption. For such products exchange or replacement shall be the preferable methods of addressing complaints related to the items already purchased.

4.2 Refund Eligibility

We understand that sometimes products may not meet your expectations. Therefore, customers are entitled for refunds for products that are damaged, spoiled, or incorrect. Refunds are not available for products that have been used or damaged by the customer.

4.3 Required Documentation

To process your refund request, we require photos of the product and order details as well as the return of the originally purchased item. This documentation helps us to verify the condition of the product and process your refund request quickly.

4.4 Process for Requesting a Refund

To request a refund, please follow Merchant's refund process. You can initiate a refund request by contacting our customer service team. Our team will guide you through the process and provide you with the necessary information to complete your refund request.

4.5 Timeframe for Processing and Issuing Refunds

We will process and issue refunds within a certain timeframe. The timeframe may vary depending on the type of product and the reason for the refund. We will inform you of the expected timeframe for processing and issuing your refund when you initiate your refund request. We will issue refunds to the original payment method used for the purchase. Please note that it may take several business days for the refund to appear on your account, depending on your bank or credit card issuer's policies.

5. Merchant Rights and Responsibilities

5.1 Providing Accurate Product Descriptions and Images

Merchants on the QFREEMART platform are responsible for providing accurate and detailed product descriptions and images. The product description should include all relevant information about the product, including its features, specifications, and any limitations or restrictions. The images should accurately represent the product and its condition.

5.2 Ensuring Proper Labelling, Packaging and Shipping of Items

Merchants on the QFREEMART platform are responsible for ensuring that all products are properly packaged and shipped to customers. This includes using appropriate packaging materials to protect the product during shipping and ensuring that the product is shipped in a timely manner.

5.3 Responding to Replace, Exchange, Refund Requests in a Timely Manner

Merchants on the QFREEMART platform are responsible for responding to refund requests in a timely manner. This includes acknowledging the refund request, reviewing the documentation provided by the customer, and processing the refund as quickly as possible.

5.4 Complying with the Platform's Refund Policy

Merchants on the QFREEMART platform are required to comply with the platform's refund policy. This includes following the guidelines and procedures outlined in the policy, processing refunds in a timely manner, and providing accurate and detailed information to customers. Merchants who fail to comply with the refund policy may be subject to penalties or other consequences as determined by the platform.

6. Customer Rights and Responsibilities

6.1 Reading and Understanding the Refund Policy

Customers on the QFREEMART platform are responsible for reading and understanding the refund policy. This includes reviewing the policy before making a purchase and familiarizing themselves with the conditions for refund eligibility, required documentation, and the process for requesting a refund.

6.2 Providing Accurate Shipping Information

Customers on the QFREEMART platform are responsible for providing accurate shipping information, including their name, address, and contact information. This information should be entered correctly at the time of purchase to ensure that the product is delivered to the correct address.

6.3 Inspecting Items Upon Receipt and Reporting Issues Promptly

Customers on the QFREEMART platform are responsible for inspecting the product upon receipt and reporting any issues promptly. This includes checking the product for damage, spoilage, or defects, and reporting any issues to the merchant or platform as soon as possible.

6.4 Providing Required Documentation for Refund Requests

Customers on the QFREEMART platform may be required to provide documentation to support their refund request, such as photos of the damaged or defective product, order details, and any other relevant information. Customers are responsible for providing all required documentation in a timely manner to ensure that their refund request can be processed as quickly as possible.

6.5 Consumer rights

All obligations established under India Legal Frameworks are considered rights of the Consumer, including:

1. Providing an appropriate and safe environment when purchasing a Good or receiving a Service.
2. Obtaining correct information about the Goods that he purchases, uses, or consumes, or the Service he receives.
3. Educating him and raising his awareness in respect of his rights and obligations.
4. Exercising his rights to choose the most appropriate product and Service available in the market according to his wishes.
5. Protecting the privacy and security of his data and not using it for promotional and marketing purposes.
6. Respecting his religious values, customs and traditions when providing him with any Good or receiving any Service.
7. Just and prompt settlement of his disputes including but not limited to Rights to return, replace, exchange, refuse
8. Obtaining fair compensation for damages incurred by him or his money as a result of purchasing or using the Good or receiving the Service.

7. Dispute Resolution

7.1 Process for Resolving Disputes Between Merchants and Customers

In the event of a dispute between a merchant and a customer on the QFREEMART platform, the parties should first attempt to resolve the issue through direct communication. If the issue cannot be resolved through direct communication, the customer may file a dispute with the QFREEMART platform. The platform will review the dispute and may request additional information or documentation from both parties. The platform will then make a determination based on the evidence presented and may issue a refund or take other appropriate action.

7.2 Role of the Multi-Vendor Platform in Dispute Resolution

The QFREEMART platform plays a role in dispute resolution by providing a platform for communication between merchants and customers, and by providing a process for resolving disputes. The platform may also provide mediation or arbitration services to help resolve disputes between merchants and customers. The platform's decision in a dispute is final and binding, and both merchants and customers are required to comply with the platform's decision.

8. Policy Updates and Modifications

8.1 Notification of Policy Changes

The QFREEMART platform may update or modify the refund policy from time to time to reflect changes in the platform's policies or procedures, changes in applicable laws or regulations, or other factors. The platform will notify merchants and

customers of any changes to the refund policy by posting the updated policy on the platform's website or by sending an email notification to registered users.

8.2 Effective Date of Policy Updates

The effective date of any updates or modifications to the refund policy will be clearly stated in the updated policy. The updated policy will apply to all purchases made on the platform after the effective date. Customers and merchants who continue to use the platform after the effective date of the updated policy are deemed to have accepted the updated policy and agree to comply with its terms and conditions.

9. Contact Information

9.1 QFREEMART Customer Support Contact Details

Customers who have questions or concerns about the refund policy or need assistance with a refund request can contact the QFREEMART platform's customer support team. The customer support team can be reached by email, phone, or through the platform's messaging system. The contact details for the customer support team will be clearly stated on the platform's website.

9.2 Merchant Contact Details for Refund-Related Inquiries

Customers who need to contact a merchant regarding a refund request can find the merchant's contact details on the product page or in the order confirmation email. Merchants are required to provide accurate and up-to-date contact information to customers, including an email address and phone number. Customers should contact the merchant directly for any refund-related inquiries or issues.

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